

Authorised Version No. 134
Interpretation of Legislation Act 1984
No. 10096 of 1984

Authorised Version incorporating amendments as at
1 May 2026

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An Act to make fresh provision with respect to the construction and operation of, and the shortening of the language used in, Acts of Parliament and subordinate instruments, to repeal the **Acts Interpretation Act 1958**, to amend the **Property Law Act 1958**, the **Supreme Court Act 1958**, the **Subordinate Legislation Act 1962**, the **Constitution Act 1975**, the **Penalties and Sentences Act 1981** and certain other Acts and for other purposes.

BE IT ENACTED by the Queen's Most Excellent Majesty by and with the advice and consent of the Legislative Council and the Legislative Assembly of Victoria in this present Parliament assembled and by the authority of the same as follows (that is to say):

Part I—Preliminary

1 Short title

This Act may be cited as the **Interpretation of Legislation Act 1984**.

2 Commencement

This Act shall come into operation on 1 July 1984.

3 Definitions

In this Act, unless inconsistent with the context or subject-matter—

amended, in relation to a subordinate instrument, includes altered or varied;

made, in relation to a subordinate instrument,
includes issued or granted;

repealed, in relation to a subordinate instrument,
includes revoked or rescinded.

S. 3 def. of
statutory rule
substituted by
No. 104/1994
s. 35(Sch. 2
item 3.1),
repealed by
No. 61/2004
s. 6(2).

* * * *

S. 3 def. of
*subordinate
instrument*
repealed by
No. 61/2004
s. 6(2).

* * * *

4 Application, construction and repeal provisions

- (1) The provisions of this Act—
 - (a) unless a contrary intention appears in this Act or in the Act or subordinate instrument concerned, extend and apply to all Acts, whether passed before or after the commencement of this Act, and to all subordinate instruments, whether made before or after that commencement; and
 - (b) apply to the interpretation of this Act.
- (2) Nothing in this Act excludes the application to an Act or subordinate instrument of a rule of construction applicable thereto and not inconsistent with this Act.
- (3) The provisions of this Act which are expressed to apply to Acts passed or subordinate instruments made on or after the commencement of this Act shall not affect the construction of any Act passed or subordinate instrument made before that commencement although that Act or subordinate

instrument is continued in force or amended by an Act passed or subordinate instrument made on or after that commencement.

- (4) The Acts mentioned in the Schedule to the extent to which they are in the Schedule expressed to be amended or repealed are hereby amended or repealed accordingly.

5 Act to bind Crown

This Act binds the Crown, not only in right of the State of Victoria, but also, so far as the legislative power of the Parliament permits, the Crown in all its other capacities.

Part II—Provisions applicable to Acts

6 Construction of Acts

- (1) Every Act shall be construed as operating to the full extent of, but so as not to exceed, the legislative power of the State of Victoria, to the intent that where a provision of an Act, or the application of any such provision to any person, subject-matter or circumstance, would, but for this section, have been construed as being in excess of that power, it shall nevertheless be a valid provision to the extent to which it is not in excess of that power and the remainder of the Act and the application of that provision to other persons, subject-matters or circumstances shall not be affected.
- (2) The provisions of this section are in addition to, and not in derogation of, any provision of any Act relating to the construction, or extent of the operation, of that Act.

7 Sections to be substantive enactments

Every section of an Act has effect as a substantive enactment without introductory words.

8 Amendment or repeal in same session

An Act may be amended or repealed in the session of Parliament in which it is passed.

9 Citation of Acts by number

- (1) The Acts passed in each calendar year shall be numbered in regular arithmetical series, beginning with the number 1, in the order in which they receive or, for the purposes of section 69 of the **Constitution Act 1975**, are deemed to have received the Royal Assent.

S. 9
substituted by
No. 10214 s. 4.

(2) It is sufficient to refer to an Act in—

- (a) any other Act;
- (b) a subordinate instrument;
- (c) a deed or other instrument; or
- (d) any other document whatsoever—

by—

- (e) in the case of an Act passed before 1 January 1986, the number of that Act only; and
- (f) in the case of an Act passed on or after 1 January 1986, the calendar year in which it was passed and its number among the Acts of that year.

(3) A failure to comply with subsection (1) in a calendar year (whether the calendar year 2006 or any earlier or later calendar year) does not affect the validity, operation or effect of an Act passed in that year.

**S. 9(3)
inserted by
No. 13/2006
s. 3.**

10 Citation of Acts by title

**S. 10
substituted by
No. 10214 s. 5.**

(1) An Act may be cited in—

- (a) that Act or any other Act;
- (b) a subordinate instrument;
- (c) a deed or other instrument;
- (d) any other document whatsoever—

by—

- (e) the short title authorized by that Act whether or not that Act or the provision of that Act authorizing that form of citation has come into operation or has been repealed; or

(f) if there is no short title authorized by that Act, the title appearing before the enacting words or, if there is a preamble, before the preamble, whether or not that Act has come into operation or has been repealed.

(2) The title of an Act appearing before the enacting words or, if there is a preamble, before the preamble, forms part of the Act if there is no short title authorized by the Act.

S. 10(2AA)
inserted by
No. 5/2015
s. 4.

(2AA) A citation of an Act by the title appearing before the enacting words or, if there is a preamble, before the preamble, being a citation that is in italics without bolding, is sufficient for the purposes of subsection (1).

S. 10(2A)
inserted by
No. 2/2007
s. 3.

(2A) The Clerk of the Parliaments must alter the title appearing before the enacting words (or, if there is a preamble, before the preamble) in a Bill that is to be presented to the Governor for the Royal Assent by substituting the word "Act" for the word "Bill".

S. 10(2B)
inserted by
No. 2/2007
s. 3.

(2B) The alteration of a Bill to give effect to subsection (2A) is not to be taken to be an amendment of the Bill.

(3) If an Act passed on or after 1 September 1985 does not authorize its citation by a short title, the long title of the Bill for the Act does not form part of the Act.

S. 10A
inserted by
No. 10214 s. 6.

10A Construction of power to fix commencement of Act

(1) If an Act provides for the Act or a provision of the Act to come into operation on a day to be proclaimed, the Act confers power on the Governor in Council to fix by proclamation published in the Government Gazette a day for the Act or provision to come into operation.

- (2) If an Act provides for the Act or provisions of the Act to come into operation on a day or days to be proclaimed, the Act confers power on the Governor in Council to fix by proclamation or proclamations published in the Government Gazette—
- (a) a day for the Act or provisions to come into operation; or
- (b) different days for different provisions of the Act to come into operation.
- (3) If an Act makes no provision for the commencement of a particular provision of the Act, the Act must be taken to provide for the provision to come into operation on a day to be proclaimed or on the first anniversary of the passing of the Act, whichever is the earlier.
- (4) If an Act makes no provision for the commencement of the Act or of more than one provision of the Act, the Act must be taken to provide for the Act or those provisions to come into operation on a day or days to be proclaimed or on the first anniversary of the passing of the Act, whichever is the earlier.

S. 10A(3)
inserted by
No. 13/2006
s. 4(1).

S. 10A(4)
inserted by
No. 13/2006
s. 4(1).

11 Time of commencement and date of passing of Acts

- (1) Subject to subsection (2) and to section 71 of the **Constitution Act 1975**, if a particular day is fixed (whether in the Act or in a proclamation made under the Act) for an Act or a provision of an Act to come into operation, the Act or provision comes into operation at the beginning of that day.
- (2) If an Act confers power on the Governor in Council to fix by proclamation published in the Government Gazette a day for the Act or a provision or provisions of the Act to come into operation, the publication of the proclamation in the Government Gazette is a condition precedent

S. 11(1)
amended by
No. 108/1994
s. 10(a),
substituted by
No. 13/2006
s. 4(2).

S. 11(2)
amended by
No. 95/1993
s. 4(1)(a)–(e),
substituted by
No. 13/2006
s. 4(2).

to the coming into operation of the Act or provision or provisions in question.

S. 11(2A)
inserted by
No. 13/2006
s. 4(2).

- (2A) If a proclamation fixing a day for the coming into operation of an Act or a provision or provisions of an Act is made on or before the fixed day but is not published in the Government Gazette until after that day, the proclamation does not wholly fail but the Act or provision comes, or the provisions come, into operation at the beginning of the day on which the proclamation is so published.

S. 11(3)
amended by
No. 108/1994
s. 10(b).

- (3) The date of the passing of an Act is the date on which the Act receives the Royal Assent.

S. 11(4)
inserted by
No. 95/1993
s. 4(2),
amended by
No. 61/2004
s. 3(a)(b).

- (4) A reference in an Act to the date of commencement of that Act or another Act or a portion containing 2 or more provisions of that Act or another Act is, if the whole of the Act or portion referred to did not come, or is not to come, into operation on the one day, a reference to the first day on or before which all the provisions of the Act or portion referred to have come, or will have come, into operation.

12 Time of expiry of temporary Acts

Where an Act or a provision of an Act is expressed to expire, lapse or otherwise cease to have effect on a particular day, or to remain or continue in force until a particular day, the Act or provision shall continue in operation until the last moment of that day.

S. 13
substituted by
No. 13/2006
s. 5.

13 Exercise of powers between passing and commencement of Act

- (1) This section applies where an Act or a provision of an Act which does not come into operation immediately on the passing of the Act will, on its coming into operation, confer power or amend

another Act so as to confer power under the other Act as so amended to—

- (a) make subordinate instruments or any other instruments of a legislative or administrative character; or
- (b) give notices; or
- (c) make appointments; or
- (d) establish a body; or
- (e) prescribe forms; or
- (f) do any other thing—

for the purposes of that Act or provision or that other Act.

- (2) Unless the contrary intention appears, the power may be exercised at any time after the passing of the Act but its exercise does not confer a right or impose an obligation on a person before the coming into operation of the Act or provision except insofar as is necessary or expedient for the purpose of—
 - (a) bringing the Act or provision into operation; or
 - (b) making the Act or provision or the other Act as amended fully effective at or after that coming into operation.
- (3) Without limiting subsection (2), an appointee may exercise a power, and a body may meet and exercise a power, under that subsection before the coming into operation of the Act or provision in the same manner and subject to the same conditions or limitations (if any) and with an entitlement to payment of the same remuneration or allowances (if any) as if the Act or provision were in operation.

- (4) For the purposes of any provision as to the duration of the term of office of an appointee (including a member of a body), that term does not begin until the coming into operation of the Act or provision despite the exercise of any power under this section before that coming into operation.

14 Provision as to effect of repeal etc. of Acts

- (1) Where an Act or a provision of an Act—
- (a) is repealed; or
 - (b) expires, lapses or otherwise ceases to have effect—

any Act or provision of an Act that had been repealed by the first-mentioned Act or provision shall not, unless the contrary intention expressly appears, be construed as having been revived in consequence of the repeal, expiry, lapsing or ceasing to have effect of the first-mentioned Act or provision.

- (2) Where an Act or a provision of an Act—
- (a) is repealed or amended; or
 - (b) expires, lapses or otherwise ceases to have effect—

the repeal, amendment, expiry, lapsing or ceasing to have effect of that Act or provision shall not, unless the contrary intention expressly appears—

- (c) revive anything not in force or existing at the time at which the repeal, amendment, expiry, lapsing or ceasing to have effect becomes operative;
- (d) affect the previous operation of that Act or provision or anything duly done or suffered under that Act or provision;

(e) affect any right, privilege, obligation or liability acquired, accrued or incurred under that Act or provision;

(ea) affect any immunity or indemnity conferred or given by or under that Act or provision;

S. 14(2)(ea)
inserted by
No. 5/2015
s. 5(1).

(f) affect any penalty, forfeiture or punishment incurred in respect of an offence committed against that Act or provision; or

(g) affect any investigation, legal proceeding or remedy in respect of anything mentioned in paragraphs (e) to (f)—

S. 14(2)(g)
substituted by
No. 5/2015
s. 5(2).

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if that Act or provision had not been repealed or amended or had not expired, lapsed or otherwise ceased to have effect.

(2A) Without limiting subsection (2), if a provision of an Act that is of a savings or transitional nature (whether or not the Act describes it as such) or that validates anything that is or may otherwise be invalid or that requires a reference in an Act or subordinate instrument or other instrument or document to, or that relates to, an entity or a class of entity to be construed as a reference to another entity or class of entity—

S. 14(2A)
inserted by
No. 13/2006
s. 6(1).

(a) is repealed; or

(b) expires, lapses or otherwise ceases to have effect—

the repeal, expiry, lapsing or ceasing to have effect of that provision does not, unless the contrary intention expressly appears, affect the operation of the savings or transitional provision or end the validating effect of the provision or

S. 14(3)
amended by
No. 13/2006
s. 6(2).

affect the construction of that reference, as the case requires.

- (3) References in subsections (1), (2) and (2A) to the repeal of an Act or of a provision of an Act shall be construed as including references to—
- (a) a repeal effected by implication; and
 - (b) a repeal effected by abrogating or limiting the effect of the Act or provision or excluding the application of the Act or provision to any person, subject-matter or circumstance.

15 Effect of repeal etc. of amending Act

- (1) Where an Act or a provision of an Act, being an Act or provision that directly amended another Act or a subordinate instrument (whether by the insertion of words or expressions in that Act or subordinate instrument or the substitution of other words or expressions for words or expressions in that Act or subordinate instrument)—
- (a) is repealed; or
 - (b) expires, lapses or otherwise ceases to have effect—

the repeal, expiry, lapsing or ceasing to have effect of that Act or provision shall not, unless the contrary intention expressly appears, affect in any way the direct amendments made in the other Act or in the subordinate instrument or the operation or effect of those amendments.

- (2) Subsection (1) applies to a direct amendment made to a provision of an Act by another provision of that Act in the same manner as it applies to a direct amendment made to an Act by another Act.

16 Repeal and re-enactment

Where an Act or a provision of an Act is repealed and re-enacted (with or without modification) then, unless the contrary intention expressly appears—

- (a) any reference in any Act or subordinate instrument to the repealed Act or provision shall be construed as a reference to the re-enacted Act or provision; and
- (b) insofar as any subordinate instrument made or other thing done under the repealed Act or provision, or having effect as if so made or done, could have been made or done under the re-enacted Act or provision, it shall have effect as if made or done under the re-enacted Act or provision.

17 Construction of references in Acts to other enactments

**S. 17
amended by
No. 95/1993
s. 5(1).**

- (1) A reference in an Act to that Act or to any provision of that Act or to any other Act or to any provision of any other Act or to any subordinate instrument or provision of a subordinate instrument shall, unless the contrary intention appears, be construed—
 - (a) if the Act, subordinate instrument or provision in question has been amended, as a reference to the Act, subordinate instrument or provision as amended and in force for the time being;
 - (b) if the Act, subordinate instrument or provision in question has been re-enacted or re-made (with or without modification), as a reference to the Act, subordinate instrument or provision as re-enacted or re-made and in force for the time being;

- (c) if the Act, subordinate instrument or provision in question has been re-enacted or re-made (with or without modification) and subsequently amended, as a reference to the Act, subordinate instrument or provision as re-enacted or re-made and as subsequently amended and in force for the time being; and
- (d) if the Act, subordinate instrument or provision in question has been repealed and not re-enacted or re-made, as a reference to the Act, subordinate instrument or provision as in force immediately before its repeal.

S. 17(1A)
inserted by
No. 13/2006
s. 7(1).

- (1A) A reference in an Act to any provision of that or any other Act or to any provision of a subordinate instrument must, if the provision in question has been renumbered or relocated, be construed as a reference to the provision as renumbered or relocated and in force for the time being, unless the contrary intention appears.

S. 17(2)
inserted by
No. 95/1993
s. 5(2).

- (2) In this section—
 - (a) a reference to an Act includes a reference to—
 - (i) a Commonwealth Act; and
 - (ii) an Act or Ordinance of another State or of a Territory;
 - (b) a reference to a subordinate instrument includes a reference to an instrument of a legislative character made or to be made under or pursuant to the provisions of—
 - (i) a Commonwealth Act; and
 - (ii) an Act or Ordinance of another State or of a Territory.

18 References in Acts to provisions of subordinate instruments

S. 18
amended by
No. 12/1989
s. 4(1)(Sch. 2
item 63.1).

Where in an Act reference is made to a regulation, rule, by-law, local law, proclamation, Order in Council, order, scheme or other provision, the reference shall, unless the context otherwise requires, be construed as a reference to a regulation, rule, by-law, local law, proclamation, Order in Council, order, scheme or other provision (as the case requires) contained in a subordinate instrument made or to be made under or pursuant to the provisions of the Act in which the reference occurs.

19 Citation of references in Acts

(1) Where a provision of an Act refers—

(aaa) to a Chapter by a number, the reference shall, unless the context otherwise requires, be construed as a reference to the Chapter, designated by that number, of the Act in which the reference occurs;

S. 19(1)(aaa)
inserted by
No. 60/2000
s. 4(1).

(aa) to a Part by a number, the reference shall, unless the context otherwise requires, be construed—

S. 19(1)(aa)
inserted by
No. 60/2000
s. 4(1).

(i) if the Act contains Chapters and the Part number is not a decimal number—as a reference to the Part, designated by that number, of the Chapter in which the reference occurs; or

S. 19(1)(aa)(i)
substituted by
No. 5/2015
s. 6.

(ia) if the Act contains Chapters and the Part number is a decimal number—as a reference to the Part, designated by that number, of the Act in which the reference occurs; or

S. 19(1)(aa)(ia)
inserted by
No. 5/2015
s. 6.

S. 19(1)(a)
amended by
No. 60/2000
s. 4(2).

- (ii) if the Act does not contain Chapters, as a reference to the Part, designated by that number, of the Act in which the reference occurs;
- (a) to a section or Schedule by a number, the reference shall, unless the context otherwise requires, be construed as a reference to the section or Schedule, designated by that number, of or to the Act in which the reference occurs;
- (b) to a Schedule but does not refer to it by a number, the reference shall, unless the context otherwise requires, if there is only one Schedule to the Act in which the reference occurs, be construed as a reference to the Schedule to the Act in which the reference occurs; or
- (c) to a Division, Subdivision, subsection, paragraph, subparagraph, sub-subparagraph, clause, subclause, sub-subclause, item, column, table or form by a number, the reference shall, unless the context otherwise requires, be construed as a reference—
 - (i) to the Division, designated by that number, of the Part in which the reference occurs;
 - (ii) to the Subdivision, designated by that number, of the Division in which the reference occurs;
 - (iii) to the subsection, designated by that number, of the section in which the reference occurs;
 - (iv) to the paragraph, designated by that number, of the section, subsection, interpretation or Schedule in which the reference occurs;

- (v) to the paragraph, designated by that number, of the clause, subclause, item, column, table or form of or in the Schedule in which the reference occurs;
- (vi) to the subparagraph, designated by that number, of the paragraph in which the reference occurs;
- (vii) to the sub-subparagraph, designated by that number, of the subparagraph in which the reference occurs;
- (viii) to the table, designated by that number, of or in the section or subsection in which the reference occurs;
- (ix) to the clause, item, column, table or form, designated by that number, of or in the Schedule in which the reference occurs;
- (x) to the subclause, designated by that number, of the clause in which the reference occurs; or
- (xi) to the sub-subclause, designated by that number, of the subclause in which the reference occurs—

as the case requires.

(2) In subsection (1) **number** means—

- (a) a number expressed in words or figures;
- (b) a letter; or
- (c) a combination of a number so expressed and a letter.

S. 20
amended by
Nos 12/1989
s. 4(1)(Sch. 2
item 63.2),
60/2000
s. 4(3),
38/2017 s. 88.

20 Construction of references in Acts to portions of Acts or subordinate instruments

In an Act, a description or citation of a portion of that Act or of any other Act or of any subordinate instrument made under that Act or any other Act shall, unless the contrary intention appears, be construed as including the word, section, subsection, paragraph, subparagraph, regulation, rule, by-law, local law, subregulation, subrule, clause, Chapter, Part, Schedule or other division mentioned or referred to as forming the beginning and as forming the end of the portion comprised in the description or citation.

21 Meaning of certain expressions in Acts

- (1) Unless the contrary intention appears, a reference in an Imperial Act or an Act of the Governor and Legislative Council of the colony of New South Wales in force in Victoria on 1 July 1851—
 - (a) to the colony or the colony of New South Wales or the territory of New South Wales or the district of Port Phillip shall be construed as a reference to Victoria;
 - (b) to the Governor of the colony of New South Wales shall be construed as a reference to the Governor of Victoria;
 - (c) to the Colonial Secretary of the colony of New South Wales or the Superintendent of Port Phillip shall be construed as a reference to the responsible Minister of the Crown in Victoria for the time being administering the provision in which the reference occurs;
 - (d) to the Supreme Court of the colony of New South Wales or any judge of that Court or to any other court in that colony or to any judge, justice or other person presiding in any such court shall be construed as a

- reference to the court, judge or other person having a similar jurisdiction in Victoria;
- (e) to a justice of the peace in and for the colony of New South Wales shall be construed as a reference to a justice of the peace in and for Victoria;
 - (f) to any officer or other person in the public service of the colony of New South Wales shall be construed as a reference to an officer or other person having similar duties in the public service of Victoria; and
 - (g) to the Government Gazette of the colony of New South Wales shall be construed as a reference to the Victoria Government Gazette.
- (2) Unless the contrary intention appears, a reference in any Act (by whatsoever Parliament passed) in force in Victoria on 21 November 1856 to the Legislative Council shall be construed as a reference to the Legislative Council of Victoria and the Legislative Assembly of Victoria.
- (3) Unless the contrary intention appears, a reference in any Act to His Majesty's navy or army or to His Majesty's naval or military forces or to the naval or military forces of the Commonwealth or to naval or military service therewith shall be construed as including a reference to His Majesty's air forces or the air forces of the Commonwealth or to service therewith, as the case requires.

S. 21(3)
amended by
No. 25/2023
s. 3.

21A Incorporation of amendments

S. 21A
inserted by
No. 104/1994
s. 29.

- (1) If an Act has been amended then in any reprinting of the Act the Government Printer must, unless the Chief Parliamentary Counsel otherwise approves, reprint the Act as so amended.
- (2) There must be printed in a reprint of an Act—

- (a) a reference to each Act or subordinate instrument by which the reprinted Act is amended; and
- (b) a reference (whether in a sidenote, footnote or endnote) to each provision of the reprinted Act that is amended and the provision of the Act or subordinate instrument by which the amendment is made.

S. 21A(3)
inserted by
No. 2/2007
s. 4.

- (3) In reprinting an Act the Government Printer may omit the indorsement on the Act of the date of its passing.

S. 21A(4)
inserted by
No. 2/2007
s. 4.

- (4) Nothing in subsection (3) affects the status of the indorsement as part of the Act.

Note

See **Constitution Act 1975**, section 69.

Part III—Provisions applicable to subordinate instruments

22 Subordinate instruments to be construed subject to legislative power of the State and to empowering Act

- (1) Every subordinate instrument shall be construed as operating to the full extent of, but so as not to exceed—
 - (a) the legislative power of the State of Victoria;
or
 - (b) the power to make the subordinate instrument conferred by the Act under or pursuant to which it is made—

to the intent that where a provision of a subordinate instrument, or the application of any such provision to any person, subject-matter or circumstance, would, but for this section, have been construed as being in excess of that power, it shall nevertheless be a valid provision to the extent to which it is not in excess of that power and the remainder of the subordinate instrument and the application of that provision to other persons, subject-matters or circumstances shall not be affected.

- (2) The provisions of this section are in addition to, and not in derogation of, any provision of a subordinate instrument or of the Act under or pursuant to which a subordinate instrument is made relating to the construction, or extent of the operation, of that subordinate instrument.

23 Construction of subordinate instruments

Where an Act confers power to make a subordinate instrument, expressions used in a subordinate instrument made in the exercise of that power shall, unless the contrary intention appears, have the same respective meanings as

they have in the Act conferring the power as amended and in force for the time being.

24 Time of commencement of subordinate instruments

Where in respect of a subordinate instrument (not being a statutory rule) or a provision of such a subordinate instrument a particular day is fixed (whether in the subordinate instrument or in the Act under or pursuant to which the subordinate instrument is made) for it to come into operation, the subordinate instrument or the provision of the subordinate instrument comes into operation at the beginning of that day.

25 Time of expiry of temporary subordinate instruments

Where a subordinate instrument or a provision of a subordinate instrument is expressed to expire, lapse or otherwise cease to have effect on a particular day, or to remain or continue in force until a particular day, the subordinate instrument or provision shall continue in operation until the last moment of that day.

26 Exercise of powers between making and commencement of subordinate instruments

- (1) This section applies where a subordinate instrument or a provision of a subordinate instrument which does not come into operation immediately on the making of the subordinate instrument will, on its coming into operation, confer power or amend another subordinate instrument so as to confer power under the other subordinate instrument as so amended to—
- (a) make other subordinate instruments or any other instruments of a legislative or administrative character; or

S. 26
substituted by
No. 13/2006
s. 8.

- (b) give notices; or
- (c) make appointments; or
- (d) establish a body; or
- (e) prescribe forms; or
- (f) do any other thing—

for the purposes of that subordinate instrument or provision or that other subordinate instrument.

- (2) Unless the contrary intention appears, the power may be exercised at any time after the making of the subordinate instrument but its exercise does not confer a right or impose an obligation on a person before the coming into operation of the subordinate instrument or provision except insofar as is necessary or expedient for the purpose of—
 - (a) bringing the subordinate instrument or provision into operation; or
 - (b) making the subordinate instrument or provision or the other subordinate instrument as amended fully effective at or after that coming into operation.
- (3) Without limiting subsection (2), an appointee may exercise a power, and a body may meet and exercise a power, under that subsection before the coming into operation of the subordinate instrument or provision in the same manner and subject to the same conditions or limitations (if any) and with an entitlement to payment of the same remuneration or allowances (if any) as if the subordinate instrument or provision were in operation.

- (4) For the purposes of any provision as to the duration of the term of office of an appointee (including a member of a body), that term does not begin until the coming into operation of the subordinate instrument or provision despite the exercise of any power under this section before that coming into operation.

27 Implied power to repeal or amend subordinate instruments

Where an Act confers power to make a subordinate instrument the power shall, unless the contrary intention expressly appears, be construed as including a power, exercisable in the same manner and subject to the same conditions or limitations (if any), to repeal or amend a subordinate instrument made in the exercise of that power.

28 Provisions as to effect of repeal etc. of subordinate instruments

- (1) Where a subordinate instrument or a provision of a subordinate instrument—
- (a) is repealed; or
 - (b) expires, lapses or otherwise ceases to have effect—

any subordinate instrument or provision of a subordinate instrument that had been repealed by the first-mentioned subordinate instrument or provision shall not, unless the contrary intention expressly appears, be construed as having been revived in consequence of the repeal, expiry, lapsing or ceasing to have effect of the first-mentioned subordinate instrument or provision.

(2) Where a subordinate instrument or a provision of a subordinate instrument—

- (a) is repealed or amended; or
- (b) expires, lapses or otherwise ceases to have effect—

the repeal, amendment, expiry, lapsing or ceasing to have effect of that subordinate instrument or provision shall not, unless the contrary intention expressly appears—

- (c) revive anything not in force or existing at the time at which the repeal, amendment, expiry, lapsing or ceasing to have effect becomes operative;
- (d) affect the previous operation of that subordinate instrument or provision or anything duly done or suffered under that subordinate instrument or provision;
- (e) affect any right, privilege, obligation or liability acquired, accrued or incurred under that subordinate instrument or provision;
- (f) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against that subordinate instrument or provision; or
- (g) affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as is mentioned in paragraphs (e) and (f)—

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if that subordinate instrument or provision had not been repealed or amended or

had not expired, lapsed or otherwise ceased to have effect.

S. 28(2A)
inserted by
No. 13/2006
s. 6(3).

(2A) Without limiting subsection (2), if a provision of a subordinate instrument that is of a savings or transitional nature (whether or not the subordinate instrument describes it as such) or that validates anything that is or may otherwise be invalid or that requires a reference in a subordinate instrument or Act or other instrument or document to, or that relates to, an entity or a class of entity to be construed as a reference to another entity or class of entity—

- (a) is repealed; or
- (b) expires, lapses or otherwise ceases to have effect—

the repeal, expiry, lapsing or ceasing to have effect of that provision does not, unless the contrary intention expressly appears, affect the operation of the savings or transitional provision or end the validating effect of the provision or affect the construction of that reference, as the case requires.

S. 28(3)
amended by
No. 13/2006
s. 6(4).

(3) References in subsections (1), (2) and (2A) to the repeal of a subordinate instrument or of a provision of a subordinate instrument shall be construed as including references to—

- (a) a repeal effected by implication; and
- (b) a repeal effected by abrogating or limiting the effect of the subordinate instrument or provision or excluding the application of the subordinate instrument or provision to any person, subject-matter or circumstance.

29 Effect of repeal etc. of amending subordinate instrument

- (1) Where a subordinate instrument or a provision of a subordinate instrument, being a subordinate instrument or provision that directly amended another subordinate instrument or an Act (whether by the insertion of words or expressions in that subordinate instrument or Act or the substitution of other words or expressions for words or expressions in that subordinate instrument or Act)—
- (a) is repealed; or
 - (b) expires, lapses or otherwise ceases to have effect—

the repeal, expiry, lapsing or ceasing to have effect of that subordinate instrument or provision shall not, unless the contrary intention expressly appears, affect in any way the direct amendments made in the other subordinate instrument or in the Act or the operation or effect of those amendments.

- (2) Subsection (1) applies to a direct amendment made to a provision of a subordinate instrument by another provision of that subordinate instrument in the same manner as it applies to a direct amendment made to a subordinate instrument by another subordinate instrument.

30 Repeal and re-making

Where a subordinate instrument or a provision of a subordinate instrument is repealed and re-made (with or without modification) then, unless the contrary intention expressly appears—

- (a) any reference in any subordinate instrument or Act to the repealed subordinate instrument or provision shall be construed as a reference

to the re-made subordinate instrument or provision; and

- (b) insofar as any subordinate instrument made or other thing done under the repealed subordinate instrument or provision, or having effect as if so made or done, could have been made or done under the re-made subordinate instrument or provision, it shall have effect as if made or done under the re-made subordinate instrument or provision.

S. 31
amended by
No. 95/1993
s. 5(3).

31 Construction of references in subordinate instruments to other enactments

- (1) A reference in a subordinate instrument to that subordinate instrument or to any provision of that subordinate instrument or to any other subordinate instrument or to any provision of any other subordinate instrument or to any Act or provision of an Act shall, unless the contrary intention appears, be construed—
 - (a) if the subordinate instrument, Act or provision in question has been amended, as a reference to the subordinate instrument, Act or provision as amended and in force for the time being;
 - (b) if the subordinate instrument, Act or provision in question has been re-made or re-enacted (with or without modification), as a reference to the subordinate instrument, Act or provision as re-made or re-enacted and in force for the time being;
 - (c) if the subordinate instrument, Act or provision in question has been re-made or re-enacted (with or without modification) and subsequently amended, as a reference to the subordinate instrument, Act or provision

as re-made or re-enacted and as subsequently amended and in force for the time being; and

- (d) if the subordinate instrument, Act or provision in question has been repealed and not re-enacted or re-made, as a reference to the Act, subordinate instrument or provision as in force immediately before its repeal.

- (1A) A reference in a subordinate instrument to any provision of that or any other subordinate instrument or to any provision of an Act must, if the provision in question has been renumbered or relocated, be construed as a reference to the provision as renumbered or relocated and in force for the time being, unless the contrary intention appears.

S. 31(1A)
inserted by
No. 13/2006
s. 7(2).

- (2) In this section—

S. 31(2)
inserted by
No. 95/1993
s. 5(4).

- (a) a reference to an Act includes a reference to—
- (i) a Commonwealth Act; and
 - (ii) an Act or Ordinance of another State or of a Territory;
- (b) a reference to a subordinate instrument includes a reference to an instrument of a legislative character made or to be made under or pursuant to the provisions of—
- (i) a Commonwealth Act; or
 - (ii) an Act or Ordinance of another State or of a Territory.

S. 32
amended by
No. 4/1986
s. 4,
substituted by
No. 6/1991
s. 3.

32 Prescribing matters by reference to other documents¹

(1) In this section—

S. 32(1) def. of
Code
amended by
Nos 80/1990
s. 98(2),
48/1992
s. 116(2),
41/1995 s. 60,
83/1996
s. 38, 29/1997
s. 9, 31/1998
s. 26, 37/1999
s. 58(Sch. 1
item 2.1),
30/2008
s. 42(1),
11/2010 s. 51,
55/2025 s. 57.

Code means—

- (a) the **Companies (Victoria) Code**;
- (b) the **Companies (Acquisition of Shares) (Victoria) Code**;
- (c) the **Futures Industry (Victoria) Code**;
- (d) the **Securities Industry (Victoria) Code**;
- (e) the **Companies and Securities (Interpretation and Miscellaneous Provisions) (Victoria) Code**;
- (f) any other Code to which the **Companies and Securities (Interpretation and Miscellaneous Provisions) (Application of Laws) Act 1981** applies;
- (g) the ASIC Law of Victoria;
- (h) the Corporations Law of Victoria;
- (ha) the National Electricity (Victoria) Law;
- (i) the **AFIC (Victoria) Code**;
- (j) the **Financial Institutions (Victoria) Code**;
- (ja) the National Gas (Victoria) Law;

* * * * *

- (l) the **Friendly Societies (Victoria) Code**;

- (m) a regulation or rule that has the force of law in Victoria made under a Code or Law referred to in paragraphs (a) to (l);

relevant day means the day on which the **Interpretation of Legislation (Amendment) Act 1991** comes into operation.

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S. 32(1) def. of *statutory rule* repealed by No. 60/2000 s. 5(1).

- (2) If an Act (whether passed before or after the relevant day) authorises or requires provision to be made for or in relation to a matter by a subordinate instrument, the subordinate instrument, if made on or after the relevant day and unless the contrary intention appears in the Act under or pursuant to which it is made—
- (a) may make provision for or in relation to that matter by applying, adopting or incorporating, with or without modification, the provisions of—
- (i) an Act; or
- (ia) a Commonwealth Act; or
- (ii) a Code; or
- (iii) a statutory rule; or

S. 32(2)(a)(ia) inserted by No. 60/2000 s. 5(2)(a).

S. 32(2)(a)(iii) amended by No. 60/2000 s. 5(2)(b).

Interpretation of Legislation Act 1984
No. 10096 of 1984

Part III—Provisions applicable to subordinate instruments

S. 32(2)(a)(iv)
inserted by
No. 60/2000
s. 5(2)(b).

(iv) a statutory rule (within the meaning of the Statutory Rules Publication Act 1903 of the Commonwealth) made under a Commonwealth Act—

as in force at a particular time or as in force from time to time; and

S. 32(2)(b)
amended by
No. 60/2000
s. 5(3).

(b) must not make provision for or in relation to that matter by applying, adopting or incorporating any matter contained in a document (not being an Act, Commonwealth Act, Code, statutory rule or statutory rule made under a Commonwealth Act).

S. 32(3)
amended by
Nos 104/1994
s. 30(1)(a),
60/2000
s. 5(3).

(3) If a subordinate instrument made on or after the relevant day is authorised or required to make, and does make, provision for or in relation to a matter by applying, adopting or incorporating any matter contained in a document (not being an Act, Commonwealth Act, Code, statutory rule or statutory rule made under a Commonwealth Act) whether as in force at a particular time or as in force from time to time—

S. 32(3)(a)
substituted by
No. 104/1994
s. 30(1)(b).

(a) the Minister administering the Act under which the subordinate instrument was made must if the subordinate instrument is itself required to be laid before each House of the Parliament cause—

(i) a copy of the matter so applied, adopted or incorporated to be lodged with the Clerk of the Parliaments as soon as practicable after the subordinate instrument is required to be laid before each House of the Parliament; and

(ii) notice of the documents containing the matter so applied, adopted or incorporated and of the fact that a copy of the matter so applied, adopted or

incorporated has been lodged with the Clerk of the Parliaments, to be published in the Government Gazette as soon as practicable after the copy of the matter has been lodged; and

- (iii) a copy of the notice published in the Government Gazette to be laid before each House of the Parliament as soon as practicable after it is published; and

- (b) a copy of the matter so applied, adopted or incorporated must be kept available for inspection during normal office hours by members of the public without charge—

S. 32(3)(b)
amended by
No. 104/1994
s. 30(1)(c).

- (i) in the case of a subordinate instrument that is a statutory rule, at the Department of the Minister administering the Act under which the subordinate instrument is made or at some other appropriate public office specified by the Minister by a notice published in the Government Gazette; and

- (ii) in the case of a subordinate instrument that is not a statutory rule, at the principal office of the body which made the subordinate instrument or at some other appropriate public office specified by the Minister administering the Act under which it is made by a notice published in the Government Gazette.

- (4) If a subordinate instrument made on or after the relevant day is authorised or required to make, and does make, provision for or in relation to a matter by applying, adopting or incorporating any matter contained in a document (not being an Act, Commonwealth Act, Code, statutory rule or statutory rule made under a Commonwealth Act)

S. 32(4)
amended by
No. 60/2000
s. 5(3).

as in force from time to time and after the subordinate instrument is made the matter so applied, adopted or incorporated is at any time amended—

S. 32(4)(a)
substituted by
No. 104/1994
s. 30(2),
amended by
No. 30/2003
s. 78 (as
amended by
No. 106/2003
s. 23).

- (a) the Minister administering the Act under which the subordinate instrument was made must, if the subordinate instrument is itself required to be laid before each House of the Parliament, cause—
 - (i) a copy of the matter as so amended to be lodged with the Clerk of the Parliaments as soon as practicable after that amendment is made; and
 - (ii) notice of the amendment and the documents containing that amendment and of the fact that a copy of the matter as so amended has been lodged with the Clerk of the Parliaments, to be published in the Government Gazette as soon as practicable after the copy of the matter has been lodged; and
 - (iii) a copy of the notice published in the Government Gazette to be laid before each House of the Parliament as soon as practicable after it is published; and

* * * * *

S. 32(4)(b)
repealed by
No. 104/1994
s. 30(2).

- (c) a copy of the matter as amended must be kept available for inspection during normal office hours by members of the public without charge—
 - (i) in the case of a subordinate instrument that is a statutory rule, at the Department of the Minister

administering the Act under which the subordinate instrument is made or at some other appropriate public office specified by the Minister by a notice published in the Government Gazette; and

- (ii) in the case of a subordinate instrument that is not a statutory rule, at the principal office of the body which made the subordinate instrument or at some other appropriate public office specified by the Minister administering the Act under which it is made by a notice published in the Government Gazette.

- (5) A failure to comply with subsection (3) or (4) does not affect the validity, operation or effect of the subordinate instrument.

*	*	*	*	*	S. 32(6)–(8) amended by No. 95/1993 s. 6, repealed by No. 104/1994 s. 30(3).
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*	*	*	*	*	S. 32(9)–(11) repealed by No. 104/1994 s. 30(3).
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- (12) Despite subsection (5), a person—

- (a) must not be convicted of an offence consisting of a contravention of a subordinate instrument made on or after the relevant day if it is proved that, at the time of the alleged contravention; and
- (b) is not prejudicially affected or made subject to any liability by a subordinate instrument made on or after the relevant day if it is proved that, at the relevant time—

S. 32(12)
amended by
No. 60/2000
s. 5(3).

a copy of any matter contained in a document (not being an Act, Commonwealth Act, Code, statutory rule or statutory rule made under a Commonwealth Act) applied, adopted or incorporated by the subordinate instrument could not be inspected as provided by this section.

S. 32(13)
substituted by
No. 104/1994
s. 31.

- (13) Despite any rule of law to the contrary, where salaries, wages, fees, allowances or expenses payable to any person or class of persons may be prescribed, determined or fixed by a subordinate instrument, whether or not the power to prescribe is subject to conditions, restrictions or limitations, the salaries, wages, fees, allowances or expenses may be prescribed, determined or fixed by the subordinate instrument by reference in that subordinate instrument to the salaries, wages, fees, allowances or expenses prescribed, determined or fixed by or under any other Act or by or under any Commonwealth Act from time to time as payable to any other person or class of persons.

S. 32(13A)
inserted by
No. 62/2014
s. 109.

- (13A) If a subordinate instrument may prescribe, determine or fix any conditions of office for any person or class of persons, those conditions of office may be prescribed, determined or fixed by the subordinate instrument by reference in that subordinate instrument to the conditions of office applicable to any other person or class of persons prescribed, determined or fixed from time to time—

(a) by or under any other Act; or

(b) by or under any Commonwealth Act.

S. 32(13B)
inserted by
No. 62/2014
s. 109.

- (13B) Subsection (13A) applies—

(a) whether or not the power to prescribe, determine or fix by subordinate instrument is subject to conditions, restrictions or limitations; and

(b) despite any rule of law to the contrary.

- (14) A document or matter is not applied, adopted or incorporated in a subordinate instrument by reason only that it is referred to in the subordinate instrument, or in another document or other matter applied, adopted or incorporated in the subordinate instrument, if the document or matter so referred to does not affect the operation of the subordinate instrument.

* * * * *

S. 32(15)
repealed by
No. 104/1994
s. 30(3).

33 Citation of references in regulations, rules, by-laws and local laws

- (1) Where a provision of a subordinate instrument containing a regulation, rule, by-law or local law refers—
- S. 33(1)
amended by
No. 12/1989
s. 4(1)(Sch. 2
item 63.3).

- (aaa) to a Chapter by a number, the reference shall, unless the context otherwise requires, be construed as a reference to the Chapter, designated by that number, of the subordinate instrument in which the reference occurs;
- S. 33(1)(aaa)
inserted by
No. 60/2000
s. 6(1).

- (aa) to a Part by a number, the reference shall, unless the context otherwise requires, be construed—
- S. 33(1)(aa)
inserted by
No. 60/2000
s. 6(1).

- (i) if the subordinate instrument contains Chapters, as a reference to the Part, designated by that number, of the Chapter in which the reference occurs;
or

S. 33(1)(a)
amended by
Nos 12/1989
s. 4(1)(Sch. 2
item 63.4),
60/2000
s. 6(2).

- (ii) if the subordinate instrument does not contain Chapters, as a reference to the Part, designated by that number, of the subordinate instrument in which the reference occurs;
- (a) to a regulation, rule, by-law, local law or Schedule by a number, the reference shall, unless the context otherwise requires, be construed as a reference to the regulation, rule, by-law, local law or Schedule, designated by that number, of or to the subordinate instrument in which the reference occurs;
- (b) to a Schedule but does not refer to it by a number, the reference shall, unless the context otherwise requires, if there is only one Schedule to the subordinate instrument in which the reference occurs, be construed as a reference to the Schedule to the subordinate instrument in which the reference occurs; or
- (c) to a Division, Subdivision, subregulation, subrule, clause of a by-law, paragraph, subparagraph, sub-subparagraph, clause, subclause, sub-subclause, item, column, table or form by a number, the reference shall, unless the context otherwise requires, be construed as a reference—
 - (i) to the Division, designated by that number, of the Part in which the reference occurs;
 - (ii) to the Subdivision, designated by that number, of the Division in which the reference occurs;

- (iii) to the subregulation or clause, designated by that number, of the regulation in which the reference occurs;
- (iv) to the subrule or clause, designated by that number, of the rule in which the reference occurs;
- (v) to the clause, designated by that number, of the by-law or local law in which the reference occurs; S. 33(1)(c)(v) amended by No. 12/1989 s. 4(1)(Sch. 2 item 63.5).
- (vi) to the paragraph, designated by that number, of the regulation, rule, by-law, local law, subregulation, subrule, clause of a by-law, local law, clause, subclause, interpretation or Schedule in which the reference occurs; S. 33(1)(c)(vi) amended by No. 12/1989 s. 4(1)(Sch. 2 item 63.6) (as amended by No. 13/1990 s. 38(1)(x)).
- (vii) to the paragraph, designated by that number, of the clause, subclause, item, column, table or form or in the Schedule in which the reference occurs;
- (viii) to the subparagraph, designated by that number, of the paragraph in which the reference occurs;
- (ix) to the sub-subparagraph, designated by that number, of the subparagraph in which the reference occurs;
- (x) to the clause, item, column, table or form, designated by that number, of or in the Schedule in which the reference occurs;
- (xi) to the subclause, designated by that number, of the clause in which the reference occurs; or

(xii) to the sub-subclause, designated by that number, of the subclause in which the reference occurs—

as the case requires.

(2) In subsection (1) **number** means—

- (a) a number expressed in words or figures;
- (b) a letter;
- (c) a combination of a number so expressed and a letter.

S. 34
amended by
No. 60/2000
s. 6(3).

34 Construction of references in subordinate instruments to portions of subordinate instruments or Acts

In a subordinate instrument, a description or citation of a portion of that subordinate instrument or of any other subordinate instrument or of any Act shall, unless the contrary intention appears, be construed as including the word, regulation, rule, by-law, subregulation, subrule, clause, section, subsection, paragraph, subparagraph, Chapter, Part, Schedule or other Division mentioned or referred to as forming the beginning and as forming the end of the portion comprised in the description or citation.

Part IV—Provisions applicable to Acts and subordinate instruments

35 Principles of and aids to interpretation

In the interpretation of a provision of an Act or subordinate instrument—

- (a) a construction that would promote the purpose or object underlying the Act or subordinate instrument (whether or not that purpose or object is expressly stated in the Act or subordinate instrument) shall be preferred to a construction that would not promote that purpose or object; and
- (b) consideration may be given to any matter or document that is relevant including but not limited to—
 - (i) all indications provided by the Act or subordinate instrument as printed by authority, including punctuation;
 - (ii) reports of proceedings in any House of the Parliament;
 - (iii) explanatory memoranda or other documents laid before or otherwise presented to any House of the Parliament; and
 - (iv) reports of Royal Commissions, Parliamentary Committees, Law Reform Commissioners and Commissions, Boards of Inquiry, Formal Reviews or other similar bodies.

S. 35(b)(iv)
amended by
No. 67/2014
s. 147(Sch. 2
item 23).

36 Headings, Schedules, marginal notes and footnotes

(1) Headings to—

S. 36(1)(a)
amended by
No. 60/2000
s. 7(1).

(a) Chapters, Parts, Divisions or Subdivisions into which an Act or subordinate instrument is divided; or

(b) Schedules to an Act or subordinate instrument—

form part of the Act or subordinate instrument.

S. 36(1A)
inserted by
No. 60/2000
s. 7(2).

(1A) Headings to Parts, Divisions or Subdivisions into which a Schedule to an Act or subordinate instrument is divided form part of the Act or subordinate instrument if—

(a) the Act is passed, or the subordinate instrument is made, on or after 1 January 2001; or

(b) the heading is inserted into an Act passed, or subordinate instrument made, before 1 January 2001 by an Act passed, or subordinate instrument made, on or after that date.

(2) A Schedule to an Act or subordinate instrument forms part of the Act or subordinate instrument.

S. 36(2A)
inserted by
No. 60/2000
s. 7(3).

(2A) Headings to—

(a) sections, clauses, regulations, rules or items into which an Act or subordinate instrument, or a Schedule to an Act or subordinate instrument, is divided; or

- (b) tables, columns, examples, diagrams, notes (being notes at the foot of provisions and not marginal notes, footnotes or endnotes) or forms in an Act or subordinate instrument—

form part of the Act or subordinate instrument if—

- (c) the Act is passed, or the subordinate instrument is made, on or after 1 January 2001; or
- (d) the heading is inserted into an Act passed, or subordinate instrument made, before 1 January 2001 by an Act passed, or subordinate instrument made, on or after that date.

(2B) Headings to—

S. 36(2B)
inserted by
No. 61/2004
s. 4.

- (a) Orders into which a subordinate instrument containing rules or orders regulating the practice and procedure of a court or tribunal is divided; or
- (b) Parts into which an Order referred to in paragraph (a) is divided—

form part of the subordinate instrument if—

- (c) the subordinate instrument is made on or after 1 January 2001; or
- (d) the heading is inserted into a subordinate instrument made before 1 January 2001 by a subordinate instrument made on or after that date.

- (3) No marginal note, footnote or endnote in an Act or subordinate instrument and no heading to a provision of an Act or subordinate instrument (not being a heading that forms part of the Act or subordinate instrument by force of subsection (1), (1A) or (2A)) shall be taken to form part of the Act or subordinate instrument.

S. 36(3)
amended by
No. 60/2000
s. 7(4)(a)(b).

S. 36(3A)
inserted by
No. 60/2000
s. 7(5).

- (3A) An example (being an example at the foot of a provision under the heading "**Example**" or "**Examples**"), diagram or note (being a note at the foot of a provision and not a marginal note, footnote or endnote) in an Act or subordinate instrument forms part of the Act or subordinate instrument if—
- (a) the Act is passed, or the subordinate instrument is made, on or after 1 January 2001; or
 - (b) the example, diagram or note is inserted into an Act passed, or subordinate instrument made, before 1 January 2001 by an Act passed, or subordinate instrument made, on or after that date.

S. 36(3B)
inserted by
No. 60/2000
s. 7(5).

- (3B) Punctuation in an Act or subordinate instrument forms part of the Act or subordinate instrument if—
- (a) the Act is passed, or the subordinate instrument is made, on or after 1 January 2001; or
 - (b) the punctuation is inserted into an Act passed, or subordinate instrument made, before 1 January 2001 by an Act passed, or subordinate instrument made, on or after that date.

S. 36(3C)
inserted by
No. 60/2000
s. 7(5).

- (3C) A provision number in an Act or subordinate instrument (whether passed or made before, on or after 1 January 2001) forms part of the Act or subordinate instrument.

S. 36(3D)
inserted by
No. 60/2000
s. 7(5).

- (3D) An explanatory memorandum or table of provisions printed with an Act or subordinate instrument before the title of the Act or subordinate instrument does not form part of the Act or subordinate instrument.

- | | |
|---|---|
| (3E) An index or other material printed with an Act or subordinate instrument after the endnotes to the Act or subordinate instrument does not form part of the Act or subordinate instrument. | S. 36(3E)
inserted by
No. 60/2000
s. 7(5). |
| (4) Nothing in subsection (3) shall be construed as preventing in the interpretation of a provision of an Act or subordinate instrument, the consideration pursuant to section 35(b) of any marginal note, footnote, endnote or heading not forming part of that Act or subordinate instrument. | S. 36(4)
amended by
No. 60/2000
s. 7(6). |

36A Examples

S. 36A
inserted by
No. 60/2000
s. 8.

- (1) If an Act or subordinate instrument includes at the foot of a provision under the heading "**Example**" or "**Examples**" an example of the operation of the provision, the example—
 - (a) is not exhaustive; and
 - (b) may extend, but does not limit, the meaning of the provision.
- (2) This section applies to an example of a kind referred to in subsection (1) included in an Act or subordinate instrument if—
 - (a) the Act is passed, or the subordinate instrument is made, on or after 1 January 2001; or
 - (b) the example is inserted into an Act passed, or subordinate instrument made, before 1 January 2001 by an Act passed, or subordinate instrument made, on or after that date.

S. 36B
inserted by
No. 61/2004
s. 5.

36B Location of penalties, examples and notes

- (1) In this section *legislative item* means a penalty, an example or a note.
- (2) A legislative item set out in an Act or subordinate instrument in relation to a provision of that Act or subordinate instrument is to be taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision if it would be at the foot of that provision if no other legislative item were set out in relation to that provision.
- (3) This section applies in relation to a legislative item even if—
 - (a) that item was inserted by an amending Act or subordinate instrument that provided for its insertion before or after another specified legislative item and did not expressly provide for its insertion at the foot of the relevant provision; or
 - (b) the amending Act or subordinate instrument by which it was inserted described another specified legislative item as being at the foot of the relevant provision.
- (4) Without limiting its application, this section has effect for the purposes of section 111 of the **Sentencing Act 1991** and sections 36(3A) and 36A of this Act.

37 Gender and number

In an Act or subordinate instrument, unless the contrary intention appears—

S. 37(a)
substituted by
No. 95/1993
s. 7.

- (a) words importing a gender include every other gender; and

* * * *

S. 37(b)
repealed by
No. 95/1993
s. 7.

(c) words in the singular include the plural; and

(d) words in the plural include the singular.

38 Definitions

In all Acts and subordinate instruments, unless the contrary intention appears—

Act means an Act passed by the Parliament of Victoria;

ADI means authorised deposit-taking institution within the meaning of the Banking Act 1959 of the Commonwealth;

S. 38 def. of
ADI
inserted by
No. 13/2006
s. 9.

approved alternative publication Internet site means an Internet site approved under section 38N;

S. 38 def. of
*approved
alternative
publication
Internet site*
inserted by
No. 13/2022
s. 37.

Attorney-General means Attorney-General of Victoria;

S. 38 def. of
*Attorney-
General*
inserted by
No. 13/2006
s. 9.

audio link has the meaning given by Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**;

S. 38 def. of
audio link
inserted by
No. 11/2021
s. 195.

audio visual link has the meaning given by Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**;

S. 38 def. of
*audio visual
link*
inserted by
No. 11/2021
s. 195.

S. 38 def. of
Australia
inserted by
No. 60/2000
s. 9.

Australia, when used in a geographical sense,
includes the Territory of Christmas Island
and the Territory of Cocos (Keeling) Islands,
but does not include any other external
Territory;

S. 38 def. of
*Australian
lawyer*
inserted by
No. 17/2014
(as amended
by
No. 8/2015).

Australian lawyer has the same meaning as it has
in the Legal Profession Uniform Law
(Victoria);

S. 38 def. of
*Australian
legal
practitioner*
inserted by
No. 17/2014
(as amended
by
No. 8/2015).

Australian legal practitioner means—

- (a) an Australian legal practitioner within
the meaning of the Legal Profession
Uniform Law (Victoria); or
- (b) a non-participant legal practitioner
within the meaning of Schedule 3 to the
Legal Profession Uniform Law
(Victoria);

S. 38 def. of
*Children's
Court*
inserted by
No. 56/1989
s. 286(Sch. 2
item 10),
repealed by
29/2006
s. 3(Sch. 1
item 15.1).

* * * * *

S. 38 def. of
bail justice
inserted by
No. 51/1989
s. 146(a)(i),
substituted by
No. 35/2002
s. 25(3),
amended by
No. 70/2010
s. 39,
substituted by
No. 32/2014
s. 57.

bail justice means—

- (a) a person appointed as a bail justice
under section 14 of the **Honorary
Justices Act 2014**; or
- (b) a person re-appointed as a bail justice
under section 15 of the **Honorary
Justices Act 2014**; or

(c) a person who is a bail justice by virtue of holding a prescribed office under section 18 of the Honorary Justices Act 2014 ;	
<i>Central Plan Office</i> means the Central Plan Office maintained under section 4 of the Survey Co-ordination Act 1958 ;	S. 38 def. of <i>Central Plan Office</i> inserted by No. 53/2017 s. 14.
<i>Chief Commissioner of Police</i> means the person appointed under section 17 of the Victoria Police Act 2013 ;	S. 38 def. of <i>Chief Commissioner of Police</i> inserted by No. 55/2025 s. 58.
<i>Chief Judge</i> means Chief Judge of the County Court;	S. 38 def. of <i>Chief Judge</i> inserted by No. 13/2006 s. 9.
<i>Chief Justice</i> means Chief Justice of the Supreme Court;	S. 38 def. of <i>Chief Justice</i> inserted by No. 13/2006 s. 9.
<i>Chief Magistrate</i> means Chief Magistrate of the Magistrates' Court;	S. 38 def. of <i>Chief Magistrate</i> inserted by No. 13/2006 s. 9.
<i>Children's Court</i> means The Children's Court of Victoria;	S. 38 new def. of <i>Children's Court</i> inserted by No. 29/2006 s. 3(Sch. 1 item 15.2).
<i>Colonial Secretary</i> and <i>Chief Secretary</i> mean the responsible Minister of the Crown for the time being administering the provision in which, or in respect of which, the expression	

is used or, if, for the time being, different Ministers are administering that provision in different respects, each of those Ministers to the extent that he or she is administering that provision in the relevant respect;

commencement, in relation to an Act or subordinate instrument or a provision of an Act or subordinate instrument, means the time at which the Act or subordinate instrument or provision comes into operation;

Commonwealth means the Commonwealth of Australia;

Commonwealth Act means an Act passed by the Parliament of the Commonwealth;

Consolidated Fund means the Consolidated Fund established under the **Financial Management Act 1994**;

S. 38 def. of *Consolidated Fund* amended by No. 18/1994 s. 66(Sch. 2 item 9).

contravention, in relation to an Act or subordinate instrument or a provision of an Act or subordinate instrument, includes a failure to comply with the Act or subordinate instrument or provision;

coroner has the same meaning as in section 3(1) of the **Coroners Act 2008**;

S. 38 def. of *coroner* inserted by No. 77/2008 s. 129(Sch. 2 item 13).

Coroners Court means the Coroners Court of Victoria;

S. 38 def. of *Coroners Court* inserted by No. 77/2008 s. 129(Sch. 2 item 13).

Costs Court has the same meaning as it has in the
Supreme Court Act 1986;

S. 38 def. of
Costs Court
inserted by
No. 78/2008
s. 24.

Costs Judge has the same meaning as it has in the
Supreme Court Act 1986;

S. 38 def. of
Costs Judge
inserted by
No. 78/2008
s. 24.

County Court means The County Court in and for
the State of Victoria;

Court of Appeal means the division of the
Supreme Court called the Court of Appeal²;

S. 38 def. of
*Court of
Appeal*
inserted by
No. 109/1994
s. 31.

Criminal Code of the Commonwealth means the
Schedule to the Criminal Code Act 1995 of
the Commonwealth;

S. 38 def. of
*Criminal Code
of the
Common-
wealth*
inserted by
No. 13/2006
s. 9.

Crown means the Crown in right of Victoria;

Deputy State Coroner means the Deputy State
Coroner of the Coroners Court;

S. 38 def. of
*Deputy State
Coroner*
inserted by
No. 77/2008
s. 129(Sch. 2
item 13).

document includes, in addition to a document in
writing—

- (a) any book, map, plan, graph or drawing;
- (b) any photograph;
- (c) any label, marking or other writing
which identifies or describes anything
of which it forms part, or to which it is
attached by any means whatsoever;

- (d) any disc, tape, sound track or other device in which sounds or other data (not being visual images) are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced therefrom;
- (e) any film (including microfilm), negative, tape or other device in which one or more visual images are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced therefrom; and
- (f) anything whatsoever on which is marked any words, figures, letters or symbols which are capable of carrying a definite meaning to persons conversant with them;

S. 38 def. of
*dual
commission
holder*
inserted by
No. 3/2016
s. 59,
amended by
No. 1/2022
s. 96.

dual commission holder means—

- (a) in relation to the Chief Judge, a person who concurrently holds both the office of Chief Judge under the **County Court Act 1958** and the office of Judge of the Supreme Court referred to in section 75(3)(d) of the **Constitution Act 1975**;
- (b) in relation to the Chief Magistrate, a person who concurrently holds both the office of Chief Magistrate under the **Magistrates' Court Act 1989** and the office of Judge of the Supreme Court referred to in section 75(3)(d) of the **Constitution Act 1975**;

<i>electronic communication</i> has the same meaning as in the Electronic Transactions (Victoria) Act 2000 ;	S. 38 def. of <i>electronic communication</i> inserted by No. 13/2006 s. 9.
<i>enactment</i> means an Act or subordinate instrument or a provision of an Act or subordinate instrument;	S. 38 def. of <i>enactment</i> inserted by No. 13/2006 s. 9.
<i>entity</i> includes a person and an unincorporated body;	S. 38 def. of <i>entity</i> inserted by No. 13/2006 s. 9.
<i>external Territory</i> means a Territory, not being an internal Territory, for the government of which as a Territory provision is made by any Commonwealth Act;	S. 38 def. of <i>external Territory</i> inserted by No. 60/2000 s. 9.
<i>Family Court</i> means Family Court of Australia;	S. 38 def. of <i>Family Court</i> inserted by No. 13/2006 s. 9.
<i>Federal Court</i> means Federal Court of Australia;	S. 38 def. of <i>Federal Court</i> inserted by No. 13/2006 s. 9.
<i>fee unit</i> has the meaning given by section 4 of the Monetary Units Act 2004 ;	S. 38 def. of <i>fee unit</i> inserted by No. 13/2006 s. 9.
<i>First Peoples' Assembly</i> means the First Peoples' Assembly of Victoria established by section 17 of the Statewide Treaty Act 2025 ;	S. 38 def. of <i>First Peoples' Assembly</i> inserted by No. 45/2025 s. 270.
<i>full name</i> and <i>proper full name</i> , in relation to a person who has a christian or other given name and a surname, mean the christian or	

other name given to that person and the
surname of that person;

S. 38 def. of
Gellung Warl
inserted by
No. 45/2025
s. 270.

Gellung Warl means Gellung Warl established by
section 10 of the **Statewide Treaty
Act 2025**;

Government Gazette means the Victoria
Government Gazette published by authority;

S. 38 def. of
*Government
Printer*
inserted by
No. 13/2006
s. 9.

Government Printer means Government Printer
for Victoria;

Note

See **Constitution Act 1975** section 72.

Governor means the person for the time being
administering the Government of Victoria;

Governor in Council means the Governor with
the advice of the Executive Council;

S. 38 def. of
GST
inserted by
No. 55/2025
s. 58.

GST has the same meaning as in the A New Tax
System (Goods and Services Tax) Act 1999
of the Commonwealth;

S. 38 def. of
High Court
inserted by
No. 13/2006
s. 9.

High Court means High Court of Australia;

S. 38 def. of
IBAC
inserted by
No. 55/2025
s. 58.

IBAC means the Independent Broad-based Anti-
corruption Commission established by
section 12 of the **Independent Broad-based
Anti-corruption Commission Act 2011**;

Imperial Act means an Act passed by—

- (a) the Parliament of England;
- (b) the Parliament of Great Britain;

- (c) the Parliament of the United Kingdom of Great Britain and Ireland; or
- (d) the Parliament of the United Kingdom of Great Britain and Northern Ireland;

individual means a natural person;

S. 38 def. of
individual
inserted by
No. 13/2006
s. 9.

infamous offence and ***infamous crime*** include—

- (a) perjury; and
- (b) the commission of an act of bestiality or an attempt to commit an act of bestiality;

insolvent under administration means—

- (a) a person who is an undischarged bankrupt within the meaning of the Bankruptcy Act 1966 of the Commonwealth (or the corresponding provisions of the law of another jurisdiction); or
- (b) a person who has executed a deed of arrangement under Part X of the Bankruptcy Act 1966 of the Commonwealth (or the corresponding provisions of the law of another jurisdiction) if the terms of the deed have not been fully complied with; or
- (c) a person whose creditors have accepted a composition under Part X of the Bankruptcy Act 1966 of the Commonwealth (or the corresponding provisions of the law of another jurisdiction) if a final payment has not been made under that composition; or

S. 38 def. of
insolvent under administration
inserted by
No. 13/2006
s. 9,
substituted by
No. 4/2008
s. 31.

- (d) a person for whom a debt agreement has been made under Part IX of the Bankruptcy Act 1966 of the Commonwealth (or the corresponding provisions of the law of another jurisdiction) if the debt agreement has not ended or has not been terminated; or
- (e) a person who has executed a personal insolvency agreement under Part X of the Bankruptcy Act 1966 of the Commonwealth (or the corresponding provisions of the law of another jurisdiction) but not if the agreement has been set aside or terminated or all of the obligations that the agreement created have been discharged;

S. 38 def. of
*internal
Territory*
inserted by
No. 60/2000
s. 9.

internal Territory means the Australian Capital Territory, the Jervis Bay Territory or the Northern Territory;

S. 38 def. of
*Jervis Bay
Territory*
inserted by
No. 60/2000
s. 9.

Jervis Bay Territory means the Territory referred to in the Jervis Bay Territory Acceptance Act 1915 of the Commonwealth;

justice means a justice of the peace;

land includes buildings and other structures permanently affixed to land, land covered with water, and any estate, interest, easement, servitude, privilege or right in or over land;

law officer means the Attorney-General and includes any Minister of the Crown for the time being acting for or on behalf of the Attorney-General;

Legislative Assembly means the Legislative Assembly of Victoria;

Legislative Council means the Legislative Council of Victoria;

magistrate has the same meaning as in section 3(1) of the **Magistrates' Court Act 1989**;

S. 38 def. of *magistrate* inserted by No. 3/2016 s. 59.

Magistrates' Court means the Magistrates' Court of Victoria;

S. 38 def. of *Magistrates' Court* inserted by No. 51/1989 s. 146(a)(ii).

Minister means the responsible Minister of the Crown for the time being administering the provision in which, or in respect of which, the expression is used or, if, for the time being, different Ministers are administering that provision in different respects, each of those Ministers to the extent that he or she is administering that provision in the relevant respect, and where a Minister of the Crown is referred to by the title of his or her Ministerial office, the reference shall be construed as including a reference to a Minister of the Crown for the time being acting for or on behalf of that Minister;

Nginma Ngainga Wara means Nginma Ngainga Wara established by the **Statewide Treaty Act 2025**;

S. 38 def. of *Nginma Ngainga Wara* inserted by No. 45/2025 s. 270.

Northern Territory means Northern Territory of Australia;

S. 38 def. of *Northern Territory* inserted by No. 95/1993 s. 8.

S. 38 def. of
Nyerna
Yoorrook
Telkuna
inserted by
No. 45/2025
s. 270.

Nyerna Yoorrook Telkuna means Nyerna
Yoorrook Telkuna established by the
Statewide Treaty Act 2025;

oath and *affidavit*, in relation to persons for the
time being allowed by law to affirm or
declare instead of swearing, include
affirmation and declaration and, in relation to
those persons, *swear* includes affirm and
declare;

Parliament means the Parliament of Victoria;

penalty unit shall be construed in accordance with
section 110 of the **Sentencing Act 1991**;

S. 38 def. of
penalty unit
amended by
Nos 10260
s. 114(Sch. 4
item 8),
49/1991
s. 119(7)(Sch.
4 item 10.1).

person includes a body politic or corporate as well
as an individual;

police officer has the same meaning as in the
Victoria Police Act 2013;

S. 38 def. of
police officer
inserted by
No. 5/2015
s. 7.

Premier means Premier of Victoria;

S. 38 def. of
Premier
inserted by
No. 13/2006
s. 9.

prescribed means prescribed by the Act in which
the word is used or by a subordinate
instrument made under or pursuant to that
Act;

public service has the same meaning as in the
Public Administration Act 2004;

S. 38 def. of
public service
inserted by
No. 13/2006
s. 9.

rules of court in relation to any court, means rules made by the authority having power to make rules or orders regulating the practice and procedure of that court;

sheriff has the same meaning as in the **Sheriff Act 2009**;

S. 38 def. of ***sheriff*** inserted by No. 9/2009 s. 77.

sitting days, in relation to either House of Parliament, means days on which the House actually sits;

Standards Australia means Standards Australia International Limited (ACN 087 326 690);

S. 38 def. of ***Standards Australia*** inserted by No. 60/2000 s. 9.

Standards Council of New Zealand means the Standards Council continued in existence under section 3 of the Standards Act 1988 of New Zealand;

S. 38 def. of ***Standards Council of New Zealand*** inserted by No. 13/2006 s. 9.

State means the State of Victoria;

State Coroner means the State Coroner of the Coroners Court;

S. 38 def. of ***State Coroner*** inserted by No. 77/2008 s. 129(Sch. 2 item 13).

S. 38 def. of
*statutory
declaration
and solemn
declaration*
substituted by
No. 57/1989
s. 3(Sch.
item 104.1),
amended by
No. 69/2009
s. 54(Sch. Pt 2
item 29),
substituted as
*statutory
declaration* by
No. 6/2018
s. 66.

statutory declaration means a statutory
declaration under Part 4 of the **Oaths and
Affirmations Act 2018**;

S. 38 def. of
statutory rule
inserted by
No. 61/2004
s. 6(1).

statutory rule has the same meaning as in the
Subordinate Legislation Act 1994;

S. 38 def. of
*subordinate
instrument*
inserted by
No. 61/2004
s. 6(1).

subordinate instrument means an instrument
made under an Act—

- (a) that is a statutory rule; or
- (b) that is not a statutory rule but—
 - (i) contains regulations, rules,
by-laws, proclamations, Orders
in Council, orders or schemes; or
 - (ii) is of a legislative character;

Supreme Court means The Supreme Court of the
State of Victoria;

S. 38 def. of
Territory
inserted by
No. 60/2000
s. 9.

Territory (when used in an Act passed, or
subordinate instrument made, on or after
1 January 2001 or inserted into an Act
passed, or subordinate instrument made,
before 1 January 2001 by an Act passed, or
subordinate instrument made, on or after
that date) means a Territory referred to in
section 122 of the Constitution of the
Commonwealth and includes a Territory

administered by the Commonwealth under a Trusteeship Agreement;

Treasurer means the Treasurer of Victoria;

VCAT means the Victorian Civil and Administrative Tribunal established by the **Victorian Civil and Administrative Tribunal Act 1998**;

S. 38 def. of **VCAT** inserted by No. 61/2004 s. 6(1).

Victoria Police means the body established by section 6 of the **Victoria Police Act 2013**;

S. 38 def. of **Victoria Police** inserted by No. 55/2025 s. 58.

waterway means a waterway as defined in section 3(1) of the **Water Act 1989**;

S. 38 def. of **waterway** inserted by No. 81/1989 s. 3(Sch. item 24).

writing includes all modes of representing or reproducing words, figures or symbols in a visible form and expressions referring to writing shall be construed accordingly.

38AAA References to Departments

S. 38AAA inserted by No. 13/2006 s. 10.

If—

- (a) reference is made in an Act or subordinate instrument to a particular Department; and
- (b) under the **Public Administration Act 2004** the name of the Department is changed—

the reference is, from the date when the name is changed and so far as it relates to any period on or after that date, to be taken to be a reference to the Department by its new name.

38AA References to Australian Standards, etc.

S. 38AA inserted by No. 60/2000 s. 10.

- (1) In an Act or subordinate instrument, a reference consisting of the words "Australian Standard" or the letters "AS" followed in either case by a

number or a number accompanied by a reference to a calendar year is a reference to the standard so numbered published by or on behalf of Standards Australia.

S. 38AA(1A)
inserted by
No. 13/2006
s. 11.

- (1A) In an Act or subordinate instrument, a reference consisting of the expression "Australian/New Zealand Standard" or "AS/NZS" followed in either case by a number or a number accompanied by a reference to a calendar year is a reference to the standard so numbered published jointly by or on behalf of Standards Australia and the Standards Council of New Zealand.
- (2) In an Act or subordinate instrument, a reference to Standards Australia includes a reference to the Standards Association of Australia as constituted before 1 July 1999.
- (3) In an Act or subordinate instrument, a reference to the Standards Association of Australia, so far as it relates to any period on or after 1 July 1999, is a reference to Standards Australia.

S. 38A
inserted by
No. 80/1990
s. 98(1),
amended by
No. 37/1999
s. 58(Sch. 1
item 2.2),
substituted by
No. 44/2001
s. 3(Sch.
item 67).

38A References to Corporations legislation

In an Act or subordinate instrument—

ASC Law has the same meaning as *ASIC Law*;

ASC Regulations has the same meaning as *ASIC Regulations* has when ASIC Regulations is used in relation to the ASIC Law;

ASIC Law has the meaning provided for by Part 11 of the **Corporations (Victoria) Act 1990**;

ASIC Act means the Australian Securities and Investments Commission Act 2001 of the Commonwealth;

ASIC Regulations—

- (a) when used in relation to the ASIC Law, has the meaning provided for by Part 11 of the **Corporations (Victoria) Act 1990**;
- (b) when used in relation to the ASIC Act, means regulations made, or that have effect as if they were made, under the ASIC Act;

Corporations Act means the Corporations Act 2001 of the Commonwealth;

Corporations Law has the meaning provided for by Part 3 of the **Corporations (Victoria) Act 1990**;

Corporations legislation means the Corporations legislation to which Part 1.1A of the Corporations Act applies;

Corporations Regulations—

- (a) when used in relation to the Corporations Law, has the meaning provided for by Part 3 of the **Corporations (Victoria) Act 1990**;
- (b) when used in relation to the Corporations Act, means regulations made, or that have effect as if they were made, under the Corporations Act.

S. 38AB
inserted by
No. 29/1997
s. 10.

38AB References to National Electricity Law

In an Act or subordinate instrument—

S. 38AB
def. of
*National
Electricity
(Victoria) Law*
amended by
No. 8/2005
s. 16(a).

National Electricity (Victoria) Law means the provisions applying because of section 6 of the **National Electricity (Victoria) Act 2005**;

S. 38AB
def. of
*National
Electricity
(Victoria)
Regulations*
amended by
No. 8/2005
s. 16(b).

National Electricity (Victoria) Regulations means the provisions applying because of section 7 of the **National Electricity (Victoria) Act 2005**.

S. 38B
inserted by
No. 48/1992
s. 116(1).

38B References to Financial Institutions legislation

In an Act or subordinate instrument—

AFIC (Victoria) Code means the provision applying because of section 5 of the **Financial Institutions (Victoria) Act 1992**;

AFIC (Victoria) Regulations means the provisions applying by reason of section 6 of the **Financial Institutions (Victoria) Act 1992**;

Financial Institutions (Victoria) Code means the provisions applying because of section 8 of the **Financial Institutions (Victoria) Act 1992**;

Financial Institutions (Victoria) Regulations means the provisions applying because of section 9 of the **Financial Institutions (Victoria) Act 1992**.

38BA References to National Gas Law

In an Act or subordinate instrument—

National Gas (Victoria) Law means the provisions applying because of section 7 of the **National Gas (Victoria) Act 2008**;

National Gas (Victoria) Regulations means the provision applying because of section 8 of the **National Gas (Victoria) Act 2008**.

* * * * *

S. 38BA
inserted by
No. 31/1998
s. 27,
substituted by
No. 30/2008
s. 42(2).

S. 38C
inserted by
No. 41/1995
s. 61,
repealed by
No. 11/2010
s. 52.

38D References to Friendly Societies legislation

In an Act or subordinate instrument—

Friendly Societies (Victoria) Code means the provisions applying because of section 5 of the **Friendly Societies (Victoria) Act 1996**;

Friendly Societies (Victoria) Regulations means the provisions applying because of section 6 of the **Friendly Societies (Victoria) Act 1996**.

S. 38D
inserted by
No. 83/1996
s. 39.

38E References to Health Practitioner Regulation National Law

In an Act or a subordinate instrument—

Health Practitioner Regulation National Law means—

(a) the Health Practitioner Regulation National Law—

(i) as in force from time to time, set out in the Schedule to the Health Practitioner Regulation National Law Act 2009 of Queensland; and

S. 38E
inserted by
No. 13/2010
s. 49.

- (ii) as it applies as a law of Victoria,
another State or a Territory
(with or without modification); or
- (b) the law of another State or a Territory
that substantially corresponds to the
law referred to in paragraph (a);

***Health Practitioner Regulation National Law
(Victoria)*** means the provisions applying
because of section 4 of the **Health
Practitioner Regulation National Law
(Victoria) Act 2009**.

S. 38EA
inserted by
No. 5/2015
s. 8.

38EA Definition of *registered medical practitioner*

- (1) Unless the contrary intention appears, in an Act or
a subordinate instrument to which this section
applies—

registered medical practitioner means a person
registered under the Health Practitioner
Regulation National Law to practise in the
medical profession (other than as a student).

- (2) This section applies to—
- (a) an Act that is passed, or a subordinate
instrument that is made, on or after
1 July 2015; or
 - (b) an Act that is passed, or a subordinate
instrument that is made, before
1 July 2015—
 - (i) into which a reference to registered
medical practitioner is inserted on or
after 1 July 2015; and
 - (ii) which does not contain a reference to
registered medical practitioner
immediately before 1 July 2015.

38F References to Australian Consumer Law

In an Act or subordinate instrument—

S. 38F
inserted by
No. 72/2010
s. 48(Sch.
item 13),
amended by
No. 57/2013
s. 11.

Australian Consumer Law (Victoria) means the provisions applying because of Chapter 2 of the **Australian Consumer Law and Fair Trading Act 2012**.

S. 38F def. of
Australian Consumer Law (Victoria)
amended by
No. 21/2012
s. 239(Sch. 6
item 22).

38FA References to Rail Safety National Law

In an Act or subordinate instrument—

S. 38FA
inserted by
No. 22/2013
s. 59.

Rail Safety National Law (Victoria) means the provisions applying because of section 6 of the **Rail Safety National Law Application Act 2013**.

38G References to Education and Care Services National Law

In an Act or subordinate instrument—

S. 38G
inserted by
No. 80/2011
s. 79(Sch.
item 4).

Education and Care Services National Law (Victoria) means the provisions applying because of section 4 of the **Education and Care Services National Law Act 2010**.

38H References to Electronic Conveyancing National Law

In an Act or subordinate instrument—

S. 38H
inserted by
No. 7/2013
s. 15.

Electronic Conveyancing National Law (Victoria) means the provisions applying because of section 4 of the **Electronic Conveyancing (Adoption of National Law) Act 2013**.

S. 38I
inserted by
No. 30/2013
s. 60(Sch.
item 5).

38I References to Heavy Vehicle National Law

In an Act or a subordinate instrument—

Heavy Vehicle National Law (Victoria) means the provisions applying because of section 4 of the **Heavy Vehicle National Law Application Act 2013**.

S. 38J
inserted by
No. 36/2013
s. 83,
renumbered
as s. 38J by
No. 21/2015
s. 3(Sch. 1
item 29).

38J References to Marine Safety (Domestic Commercial Vessel) National Law

In an Act or subordinate instrument—

Marine Safety (Domestic Commercial Vessel) National Law means—

- (a) the Commonwealth domestic commercial vessel national law within the meaning of section 3 of the **Marine (Domestic Commercial Vessel National Law Application) Act 2013**; and
- (b) the applied provisions within the meaning of section 3 of the **Marine (Domestic Commercial Vessel National Law Application) Act 2013**.

S. 38K
inserted by
No. 57/2013
s. 12.

38K References to Co-operatives National Law

In an Act or subordinate instrument—

Co-operatives National Law (Victoria) means the provisions applying because of section 4(1) of the **Co-operatives National Law Application Act 2013**.

S. 38L
inserted by
No. 17/2014
s. 159.

38L References to the Legal Profession Uniform Law

In an Act or subordinate legislation—

Legal Profession Uniform Law (Victoria) means the provisions applying because of section 4 of the **Legal Profession Uniform Law Application Act 2014**.

38M Satisfying print newspaper publication requirements

**S. 38M
inserted by
No. 13/2022
s. 38.**

- (1) If an Act, a statutory rule or any other subordinate instrument requires notice (however described) to be published in a print newspaper circulating generally in Victoria that requirement is taken to have been met, for all purposes, if the notice is published—
 - (a) on an approved alternative publication Internet site; or
 - (b) in a prescribed manner; or
 - (c) on a prescribed platform.
- (2) Without limiting subsection (1), any requirement under an Act, a statutory rule or any other subordinate instrument to provide a copy of a notice published in a print newspaper or to distribute or use a notice published in a print newspaper for any purpose is taken to have been met by providing, distributing or using an electronic notice published in accordance with subsection (1).
- (2A) For the avoidance of doubt, subsections (1) and (2) do not apply to any requirement under an Act, a statutory rule or any other subordinate instrument to provide for the publication of a notice published in a print newspaper in a particular locality.
- (3) The regulations may exempt an entity or a class of entity or a document (including an Act, a statutory rule or any other subordinate instrument) or class of document from the application of this section.

(4) Nothing in this section—

- (a) limits the manner or form in which any notice required to be published by an Act, a statutory rule or other subordinate instrument may be published; or
- (b) exempts any entity from complying with any other obligation or requirement under the Act, statutory rule or other subordinate instrument to which the notice relates in relation to the publication of the notice other than in a print newspaper.

S. 38N
inserted by
No. 13/2022
s. 38.

**38N Minister may approve alternative publications
Internet site**

The Minister, by notice published in the Government Gazette, may declare one or more Internet sites to be an approved alternative publication Internet site on which publications can be made for the purposes of section 38M.

S. 38O
inserted by
No. 13/2022
s. 38.

38O Minister may make and publish guidelines

- (1) The Minister may make guidelines on—
 - (a) the use of any approved alternative publication Internet site for the purposes of publication of notices; and
 - (b) the requirements to be complied with in relation to the publication of notices so as to satisfy publication under section 38M; and
 - (c) any other matter relating to the publication of notices under section 38M.
- (2) The guidelines under subsection (1)—
 - (a) must be published in the Government Gazette and on an approved alternative publication Internet site (if any); and
 - (b) may also be published in any other manner that the Minister considers appropriate.

38P Entities to have regard to guidelines

Any Department, public statutory authority or any prescribed entity that is responsible under an Act, a statutory rule or any other subordinate instrument for the publication of a notice (however described) must have regard to the guidelines made under section 38O when publishing any notice by electronic means.

S. 38P
inserted by
No. 13/2022
s. 38.

39 Parts of speech and grammatical forms

Where a word or phrase is given a particular meaning in an Act or subordinate instrument, other parts of speech and grammatical forms of that word or phrase have, unless the contrary intention appears, corresponding meanings.

39A Definitions inserted by amending Act or subordinate instrument

If an Act or subordinate instrument amends a provision of another Act or another subordinate instrument that contains definitions by inserting another definition in that provision but does not specify where in that provision the definition is to be inserted, it must be taken to be inserted in the appropriate alphabetical position.

S. 39A
inserted by
No. 95/1993
s. 9.

39B Numbering consequential on insertion of new provisions

- (1) If a section that is not divided into subsections is amended by the insertion of one or more subsections at the end of it, the section as in force immediately before the commencement of the amendment must be taken to be subsection (1) of that section and to be amended, by force of the amending provision, by the insertion of the expression "(1)" at the beginning of it.
- (2) If a statutory rule containing regulations or rules includes a regulation or rule that is not divided into subregulations or subrules and that regulation

S. 39B
inserted by
No. 6/1997
s. 3.

or rule is amended by the insertion at the end of it of one or more subregulations or subrules, the regulation or rule as in force immediately before the commencement of the amendment must be taken to be subregulation (1) of that regulation or subrule (1) of that rule (as the case requires) and to be amended, by force of the amending provision, by the insertion of the expression "(1)" at the beginning of it.

- (3) If a clause of a Schedule to an Act or statutory rule that is not divided into subclauses is amended by the insertion of one or more subclauses at the end of it, the clause as in force immediately before the commencement of the amendment must be taken to be subclause (1) of that clause and to be amended, by force of the amending provision, by the insertion of the expression "(1)" at the beginning of it.
- (4) This section applies only to amendments made by an Act passed, or statutory rule made, on or after the commencement of the **Interpretation of Legislation (Amendment) Act 1997**.

40 Exercise of powers and performance of duties

Unless the contrary intention appears, where an Act or subordinate instrument confers a power or imposes a duty, the power may be exercised and the duty shall be performed—

- (a) from time to time as occasion requires; and
- (b) if conferred or imposed on the holder of an office or position as such, by the person for the time being holding, acting in or performing the duties of the office or position.

41 Power to appoint

- (1) If an Act or subordinate instrument confers on a person or body (*the appointer*) a power to appoint a person to an office, the power, unless the contrary intention appears, includes a power—

S. 41
substituted by
No. 84/1997
s. 51.

- (a) to appoint a person to act in the office—

S. 41(1)(a)
amended by
No. 70/2013
s. 3(Sch. 1
item 25(a)).

- (i) until a person is appointed to the office;
or

S. 41(1)(a)(i)
amended by
No. 70/2013
s. 3(Sch. 1
item 25(b)).

- (ii) during a vacancy in the office;

- (b) to remove a person appointed to the office;
(c) to suspend a person appointed to the office and to appoint another person temporarily in the place of the person so suspended;
(d) if the holder of the office is absent or, for any other reason, unable to perform the functions and duties of the office, to appoint a person to act in place of the holder;
(e) if the holder of the office is, for any reason, unable to perform a particular function or duty on a particular occasion or in relation to a particular matter, to appoint a person to perform that function or duty on that occasion or in relation to that matter.

- (2) The following paragraphs apply in relation to an appointment of a person (*the appointee*) made under subsection (1)—

- (a) the appointer—

- (i) may determine the terms and conditions of the appointment, including remuneration and allowances (if any);

- (ii) may terminate the appointment at any time;
- (b) the appointment ceases to have effect if the appointee resigns in writing delivered to the appointer;
- (c) while the appointee is acting in the office under subsection (1) (except paragraph (e)), then, subject to the terms and conditions of the appointment—
 - (i) the appointee has and may exercise all the powers, and shall perform all the functions and duties, of the holder of the office; and
 - (ii) this or any other Act applies in relation to the appointment as if the appointee were the holder of the office;
- (d) while the appointee is appointed to perform a function or duty on a particular occasion or in relation to a particular matter, then, subject to the terms and conditions of the appointment—
 - (i) the appointee has and may exercise all the powers of the holder of the office necessary for performing that function or duty; and
 - (ii) this or any other Act applies in relation to the appointment as if the appointee were the holder of the office.
- (3) If the power of a person or body to make an appointment to an office is exercisable only on the recommendation, or subject to the approval or consent, of some other person or body, the power to make an appointment to act in the office, or to remove or suspend, is only exercisable on the recommendation, or subject to the approval or

consent, of that other person or body, unless the contrary intention appears.

- (4) Despite the substitution of section 41 of this Act by section 51 of the **Law and Justice Legislation (Further Amendment) Act 1997**, that section 41, as in force immediately before the commencement of that section 51, continues to apply to and in respect to anything done under that section 41 before that commencement.

41AA Acting appointments

S. 41AA
inserted by
No. 84/1997
s. 51.

If a provision of an Act (other than section 41 of this Act) or of a subordinate instrument confers on a person or body (*the appointer*) a power to appoint a person (*the appointee*) to act in a particular office, then, except so far as the Act or subordinate instrument otherwise provides—

- (a) the appointment may be expressed to have effect only in the circumstances specified in the instrument of appointment or in relation to a particular function or duty or on a particular occasion or in relation to a particular matter;
- (b) the appointer—
 - (i) may determine the terms and conditions of the appointment, including remuneration and allowances (if any);
 - (ii) may terminate the appointment at any time;
- (c) if the office is, or becomes, vacant while the appointee is acting, the appointee may, subject to paragraph (a), continue to act until—
 - (i) the appointer otherwise directs; or

(ii) a person is appointed to the office or the vacancy is filled—

whichever first occurs;

(e) the appointment ceases to have effect if the appointee resigns in writing delivered to the appointer;

(f) while the appointee is acting in the office, then, subject to the terms and conditions of the appointment—

(i) the appointee has and may exercise—

(A) all the powers, and shall perform all the functions and duties, of the holder of the office; or

(B) all the powers of the holder of the office necessary for performing the particular function or duty for which the appointment is made—

as the case requires; and

(ii) this or any other Act applies in relation to the appointment as if the appointee were the holder of the office.

S. 41A
inserted by
No. 10214 s. 7.

41A Power to make instrument includes power to revoke or amend

If an Act or subordinate instrument confers power to make, issue or grant an instrument (not being a subordinate instrument) the power shall, unless the contrary intention appears, be construed as including a power, exercisable in the same manner and subject to the same conditions or limitations (if any), to repeal, revoke, rescind, amend, alter or vary an instrument made in the exercise of that power.

42 Exercise of delegated powers

- (1) Where the discharge, exercise or performance by a person of a responsibility, power, authority, duty or function under an Act or subordinate instrument is dependent upon the opinion, belief or state of mind of that person in relation to a matter and the responsibility, power, authority, duty or function is, in accordance with the Act or subordinate instrument, delegated, the delegate may, unless the contrary intention appears, discharge, exercise or perform the responsibility, power, authority, duty or function upon the delegate's own opinion, belief or state of mind (as the case requires) in relation to that matter.
- (2) Subsection (1) applies in relation to a delegation made under an Act or subordinate instrument, whether the delegation was made before or after the commencement of this Act.

42A Construction of power to delegate

**S. 42A
inserted by
No. 10214 s. 8.**

- (1) If an Act or subordinate instrument confers on a person or body a power to delegate the discharge, exercise or performance of a responsibility, power, authority, duty or function under that or any other Act or subordinate instrument, then, unless the contrary intention appears—
 - (aa) the power to delegate does not include the power to delegate that power of delegation;
 - (a) the delegation does not prevent the discharge, exercise or performance of the responsibility, power, authority, duty or function by the person or body;
 - (b) the delegation may be made subject to such conditions or limitations as the person or body may specify; and

**S. 42A(1)(aa)
inserted by
No. 5/2015
s. 9.**

(c) a responsibility, power, authority, duty or function so delegated, when discharged, exercised or performed by the delegate, shall, for the purposes of the Act or subordinate instrument, be taken to have been discharged, exercised or performed by the person or body.

(2) If an Act or subordinate instrument confers power to delegate to the holder of an office or position, then, unless the contrary intention appears, a delegation may be made to any person for the time being acting in or performing the duties of that office or position.

S. 42A(3)
inserted by
No. 55/2025
s. 59.

(3) If—

- (a) a person or body delegates all of the person's or the body's responsibilities, powers, authorities, duties or functions under an Act or a subordinate instrument; and
- (b) that Act or subordinate instrument is amended to confer one or more additional responsibilities, powers, authorities, duties or functions—

on and after the commencement of the amendment, the delegation includes the additional responsibilities, powers, authorities, duties or functions conferred by that amendment.

S. 42A(4)
inserted by
No. 55/2025
s. 59.

(4) If—

- (a) a person or body delegates one or more of the person's or the body's responsibilities, powers, authorities, duties or functions under an Act or a subordinate instrument; and
- (b) that Act or subordinate instrument is amended to alter the scope of the responsibility, power, authority, duty or function—

on and after the commencement of the amendment, the delegation includes the responsibility, power, authority, duty or function as altered by that amendment.

42C Procedural defect or irregularity

**S. 42C
inserted by
No. 55/2025
s. 60.**

- (1) A person's appointment to an office or position, and anything done by a person for the time being holding or acting in an office or position, is not invalid only because of a defect or irregularity in or in relation to the making of the person's appointment to that office.
- (2) A delegation, and anything done under the delegation (including any subdelegation), is not invalid only because of a defect or irregularity in or in relation to the making of the delegation.

Note

See also section 42.

43 Measurement of distances

In the measurement of a distance for the purposes of an Act or subordinate instrument, the distance shall, unless the contrary intention appears, be measured in a straight line on a horizontal plane.

44 Time

- (1) Where in an Act or subordinate instrument a period of time is expressed to begin on, or to be reckoned from, a particular day, that day shall not be included in the period.
- (2) Where in an Act or subordinate instrument a period of time is expressed to end on, or to be reckoned to, a particular day, that day shall be included in the period.
- (3) Where the time limited by an Act or subordinate instrument for the doing of any act or thing expires or falls on a day that is a holiday, the time so limited shall extend to, and the act or thing may

**S. 44(3)
amended by
No. 43/2012
s. 3(Sch.
item 24).**

be done on, the day next following that is not a holiday.

(4) In subsection (3) *holiday* means—

- (a) a Saturday or Sunday;
- (b) a day appointed under the **Public Holidays Act 1993** as a public holiday in the place in which the act or thing is to be or may be done.

S. 44(4)(b)
substituted by
No. 119/1993
s. 16(2).

S. 44(4)(c)
repealed by
No. 119/1993
s. 16(2).

* * * * *

(5) Subject to section 4 of the **Summer Time Act 1972**, whenever an expression of time occurs in an Act or subordinate instrument, the time referred to shall, unless the contrary intention appears, be deemed to be standard time throughout Victoria as declared by section 43 of the **Supreme Court Act 1986**³.

S. 44(5)
amended by
No. 57/1989
s. 3(Sch.
item 104.2).

(6) In an Act or subordinate instrument, unless the contrary intention expressly appears—

- (a) a reference to midnight, in relation to a particular day, shall be construed as a reference to the point of time at which that day ends;
- (b) a reference to a month shall be construed as a reference to a calendar month;
- (c) a reference, without qualification, to a year shall be construed as a reference to a period of twelve months;
- (d) a reference to a financial year shall be construed as a reference to the period of twelve months ending at midnight on 30 June; and

- (e) a reference to a calendar year shall be construed as a reference to the period of twelve months ending at midnight on 31 December.
- (7) In a provision of an Act or subordinate instrument the expression "now", "heretofore" or "hereafter" shall be construed as referring to the time when the provision in which the expression occurs came into operation.

45 Construction of "may" and "shall"

- (1) Where in this Act or any Act passed or subordinate instrument made on or after the commencement of this Act the word "may" is used in conferring a power, that word shall be construed as meaning that the power so conferred may be exercised, or not, at discretion.
- (2) Where in this Act or any Act passed or subordinate instrument made on or after the commencement of this Act the word "shall" is used in conferring a power, that word shall be construed as meaning that the power so conferred must be exercised.
- (3) The provisions of this section shall have effect notwithstanding any rule of construction to the contrary and any such rule is hereby abrogated with respect to this Act and any Act passed or subordinate instrument made on or after the commencement of this Act.

46 References to the Sovereign

- (1) In an Act or subordinate instrument a reference to the Sovereign reigning at the time of the passing of the Act or making of the subordinate instrument shall, unless the contrary intention appears, be construed as a reference to the Sovereign for the time being.

S. 46
amended by
No. 25/2023
s. 4 (ILA
s. 39B(1)).

S. 46(2)
inserted by
No. 25/2023
s. 4.

- (2) Unless the contrary intention appears, in an Act or a subordinate instrument—
 - (a) if the Sovereign for the time being is the Queen—
 - (i) a reference to "His Majesty" is to be construed as a reference to "Her Majesty"; and
 - (ii) a reference to "the King" is to be construed as a reference to "the Queen"; and
 - (b) if the Sovereign for the time being is the King—
 - (i) a reference to "Her Majesty" is to be construed as a reference to "His Majesty"; and
 - (ii) a reference to "the Queen" is to be construed as a reference to "the King".

S. 46A
inserted by
No. 13/2006
s. 12.

46A Construction of provisions relating to entities representing, or not representing, the Crown

- (1) If, in an Act or subordinate instrument, it is provided that an entity represents the Crown, that entity has, for all purposes, the status, privileges and immunities of the Crown, unless the contrary intention appears.
- (2) If, in an Act or subordinate instrument, it is provided that an entity does not represent the Crown, that entity does not have, for any purpose, the status, privileges and immunities of the Crown, unless the contrary intention appears.
- (3) The fact that no provision of a kind referred to in subsection (1) or (2) is made by any Act or subordinate instrument with respect to a particular entity does not of itself give rise to any implication as to whether or not the entity has, or

does not have, the status, privileges and immunities of the Crown for any purpose.

(4) In this section *Crown* includes the State.

47 Reference to officer in general terms

In an Act or subordinate instrument a reference in general terms to a person holding or occupying a particular office or position shall, unless the contrary intention appears, be construed as a reference to all persons who at any time hold, occupy, act in or perform the duties of that office or position for the time being.

48 References to officers, localities etc.

In an Act or subordinate instrument, unless the contrary intention appears—

- (a) a reference to an officer or office shall be construed as a reference to such an officer or office in and for Victoria; and
- (b) a reference to a locality, jurisdiction or other matter or thing shall be construed as a reference to such locality, jurisdiction or other matter or thing in and of Victoria.

49 Service by post

- (1) Where an Act or subordinate instrument authorizes or requires a document to be served by post (whether the expression "serve" or the expression "give", "send" or "deliver" or any other expression is used), the service shall—
 - (a) unless the contrary intention appears, be deemed to be effected by properly addressing, prepaying and posting the document as a letter to the person on whom it is to be served; and

S. 49(2)
amended by
No. 95/1993
s. 10.

- (b) unless the contrary is proved, be deemed to have been effected at the time at which the letter would be delivered in the ordinary course of post.
- (2) Where an Act or subordinate instrument authorizes or requires a document to be served by registered post or by certified mail (whether the expression "serve" or the expression "give", "send" or "deliver" or any other expression is used), the service shall—
 - (a) unless the contrary intention appears, be deemed to be effected by properly addressing, prepaying and posting the document as a letter either by the registered post or through the certified mail service to the person on whom it is to be served; and
 - (b) unless the contrary is proved, be deemed to have been effected at the time at which the letter would ordinarily be delivered by registered post or through the certified mail service, as the case requires.

50 Rules of court

Where an Act or subordinate instrument confers any jurisdiction on a court or other tribunal or extends or varies the jurisdiction of a court or other tribunal, the authority having for the time being power to make rules or orders regulating the practice and procedure of that court or tribunal may, unless the contrary intention appears, make such rules or orders (including rules or orders with respect to costs) as appear to the authority to be necessary for regulating the practice and procedure of that court or tribunal in the exercise of the jurisdiction so conferred, extended or varied.

51 Provisions as to offences under two or more laws

- (1) Where an act or omission constitutes an offence under two or more laws, the offender shall, unless the contrary intention expressly appears, be liable to be prosecuted under either or any or all of those laws but shall not be liable to be punished more than once for the same act or omission.
- (2) In subsection (1) *law* means—
- (a) an Act or a provision of an Act;
 - (b) a subordinate instrument or a provision of a subordinate instrument; or
 - (c) common law.

* * * * *

S. 51A
inserted by
No. 51/1989
s. 146(b),
repealed by
No. 49/1991
s. 119(7)
(Sch. 4
item 10.2).

52 Summary proceedings

If an Act or subordinate instrument—

- (a) authorises or requires a proceeding or matter to be heard and determined—
 - (i) summarily; or
 - (ii) by or before the Magistrates' Court; or
- (b) uses any other words that imply that a proceeding or matter is to be heard and determined by or before the Magistrates' Court; or
- (c) does not provide a form or mode of procedure for the hearing and determination of a proceeding or matter—

S. 52
substituted by
No. 49/1991
s. 119(7)
(Sch. 4
item 10.2).

then, unless the contrary intention appears, the proceeding or matter must be heard and determined only by or before the Magistrates' Court.

53 Strict compliance with prescribed forms not necessary

Where a form is prescribed by an Act or subordinate instrument for any purpose, any form in or to the like effect of the prescribed form shall, unless the contrary intention appears, be sufficient in law.

54 Construction of references to Acts

- (1) A reference in an Act or subordinate instrument to an Imperial Act shall, unless the contrary intention appears, be construed as a reference—
 - (a) in the case of Acts included in any revised edition of the statutes printed by authority, to that edition;
 - (b) in the case of Acts not so included but included in the edition prepared under the direction of the Record Commission, to that edition; and
 - (c) in any other case, to a copy of the Act printed by the King's Printer or under the superintendence or authority of His Majesty's Stationery Office.
- (2) A reference in an Act or subordinate instrument to an Act of an Australasian State shall, unless the contrary intention appears, be construed as a reference to a copy of the Act printed by the government printer of that Australasian State.
- (2A) A document, whether made before, on or after the commencement of the **Subordinate Legislation Act 1994**, purporting to be a copy of an Act or subordinate instrument printed by the government

S. 54(1)(c)
amended by
No. 25/2023
s. 5.

S. 54(2A)
inserted by
No. 104/1994
s. 32(1).

printer of any Australasian State is on the mere production of that document admissible as evidence thereof before all courts and persons acting judicially within Victoria.

- (2B) A document made after the commencement of section 28 of the **Miscellaneous Acts (Omnibus Amendments) Act 1995** purporting to be a copy of a reprint of an Act or a statutory rule printed by the Government Printer for Victoria is on the mere production of that document admissible as evidence thereof before all courts and persons acting judicially within Victoria.

S. 54(2B)
inserted by
No. 100/1995
s. 28(1).

- (2C) A document, whether made before, on or after the commencement of section 28 of the **Miscellaneous Acts (Omnibus Amendments) Act 1995**, purporting to be a copy of a reprint of an Act or a statutory rule printed by the Government Printer of any Australasian State (other than Victoria) is, if the law of that State includes a provision corresponding to subsection (2B) of this section, on the mere production of that document admissible as evidence thereof before all courts and persons acting judicially within Victoria.

S. 54(2C)
inserted by
No. 100/1995
s. 28(1).

- (3) In this section the expressions *Act*, *Australasian State* and *government printer* have the same meanings as they have respectively in Divisions 4 and 6 of Part III of the **Evidence (Miscellaneous Provisions) Act 1958**.

S. 54(3)
amended by
Nos 104/1994
s. 32(2),
100/1995
s. 28(2),
69/2009
s. 54(Sch. Pt 2
item 29).

54A Style changes

- (1) Schedule 1 sets out style changes in Acts and statutory rules.
- (2) The Chief Parliamentary Counsel, in preparing an Act or statutory rule for reprinting or other publication, may authorise an alteration to be

S. 54A
inserted by
No. 2/2007
s. 5.

made to text or other matter forming part of the Act or statutory rule to give effect to the style changes set out in Schedule 1.

- (3) An alteration made to an Act under subsection (2) has effect for all purposes, other than section 21A(2) of this Act, as if it had been made by an Act.
- (4) An alteration made to a statutory rule under subsection (2) has effect for all purposes, other than section 18(2) of the **Subordinate Legislation Act 1994**, as if it had been made by a statutory rule.

55 Construction of references to British subjects etc.

- (1) In this section—

S. 55(1)(a)
repealed by
No. 61/1986
s. 4(a).

* * * * *

- (b) *law of Victoria* means—

- (i) an Act;
- (ii) a subordinate instrument; and
- (iii) an instrument having effect by virtue of a subordinate instrument.

S. 55(2)
substituted by
No. 61/1986
s. 4(b),
amended by
No. 25/2023
s. 6.

- (2) A reference in any law of Victoria to a British subject or to a natural-born or naturalised subject of His Majesty or to any other similar expression shall be construed as a reference to an Australian citizen or any other person—
 - (a) whose name was, at any time within the three months immediately before 26 January 1984, enrolled on—
 - (i) an electoral roll for an electoral district of the Legislative Assembly; or

-
- (ii) an electoral roll maintained under any one of the Commonwealth Acts known as the Commonwealth Electoral Act 1918, the Australian Capital Territory Representation (House of Representatives) Act 1973 and the Northern Territory Representation Act 1922; or—
- (b) who had not attained the full age of 18 years before that date but whose name could have been so enrolled at any such time if the person had attained that age before that date; or
- (c) who had not attained the full age of 18 years before that date but whose name could have been so enrolled at any such time but for the operation of section 48(2) of the **Constitution Act 1975** if the person had attained that age before that date; or
- (d) whose name could have been so enrolled at any such time but before the operation of section 48(2) of the **Constitution Act 1975**.
- (3) Where a rule of law applies to or in relation to or has effect with respect to a British subject, that rule of law shall apply to or in relation to or shall have effect with respect to an Australian citizen and a person to whom subsection (2)(a), (b), (c) or (d) applies as if that Australian citizen or person were a British subject.

S. 55(3)
substituted by
No. 61/1986
s. 4(b).

* * * * *

S. 55(4)
repealed by
No. 61/1986
s. 4(b).

56 Construction of provisions relating to bankrupt or insolvent members of public bodies

Where in an Act or subordinate instrument it is provided that a person who is or becomes bankrupt or is or becomes insolvent shall not be capable of holding or continuing to hold the office of member of a municipal council or other public statutory body, that incapacity shall extend to any person whose property is or becomes subject to control under the law relating to bankruptcy.

57 Application of laws of Victoria in certain off-shore areas⁴

S. 57(1)
amended by
Nos 10/2010
s. 800(Sch. 6
item 7.1),
64/2012 s. 73.

- (1) Subject to this section, the provisions of the laws in force in Victoria whether written or unwritten and as in force from time to time and the provisions of any instrument made under any of those laws apply in the offshore area.

S. 57(2)
amended by
No. 10/2010
s. 800(Sch. 6
item 7.2).

- (2) The provisions referred to in subsection (1) apply to and in relation to—

S. 57(2)(a)
amended by
No. 10/2010
s. 800(Sch. 6
item 7.2).

- (a) any act done or omitted to be done at a place in the offshore area which is within the outer limits of the coastal waters of Victoria;

S. 57(2)(b)
amended by
No. 10/2010
s. 800(Sch. 6
item 7.2).

- (b) any act done or omitted to be done in the offshore area by a person connected with Victoria; and

S. 57(2)(c)
amended by
No. 10/2010
s. 800(Sch. 6
item 7.2).

- (c) any matter, thing or circumstance existing or arising in the offshore area which involves or relates to persons connected with Victoria—

as if the offshore area were part of Victoria.

(3) This section does not operate—

(a) to apply in the offshore area the provisions of any law of the Commonwealth; or

S. 57(3)(a) amended by No. 10/2010 s. 800(Sch. 6 item 7.2).

(b) to apply the provisions of the criminal laws of the State to or in relation to the offshore area or the sea-bed or subsoil beneath or the airspace above that offshore area; or

S. 57(3)(b) substituted by No. 56/1999 s. 10(1), amended by No. 10/2010 s. 800(Sch. 6 item 7.2).

(c) to apply the provisions of the criminal laws of the State to or in relation to the coastal waters of Victoria or the sea-bed or subsoil beneath or the airspace above those waters.

S. 57(3)(c) inserted by No. 56/1999 s. 10(1).

(4) Subject to this section, the several courts of Victoria are invested with jurisdiction in all matters arising under the provisions of the laws applied by this section.

(5) For the purposes of proceedings for an offence against the law of Victoria an averment in an indictment, charge-sheet or complaint that—

S. 57(5) amended by Nos 57/1989 s. 3(Sch. item 104.3), 68/2009 s. 97(Sch. item 71).

(a) a person was at a specified time or in respect of a specified period a person connected with Victoria—

* * * * *

S. 57(5)(b)(c) repealed by No. 56/1999 s. 10(2).

shall be evidence and, in the absence of evidence to the contrary, conclusive evidence of the fact averred.

(6) In this section—

S. 57(6)(a)
substituted by
No. 56/1999
s. 10(3)(a),
amended by
No. 10/2010
s. 800(Sch. 6
item 7.3).

(a) *offshore area* means so much of the area described in item 2 of Schedule 1 to the Offshore Petroleum and Greenhouse Gas Storage Act 2006 of the Commonwealth in relation to Victoria as is within the outer limits of the continental shelf and includes the space above and below that area;

S. 57(6)(b)
amended by
No. 11/2002
s. 3(Sch. 1
item 38).

(b) *coastal waters of Victoria* has the same meaning as the expression *coastal waters of the State* has in relation to Victoria under the Coastal Waters (State Powers) Act 1980 of the Commonwealth;

S. 57(6)(ba)
inserted by
No. 56/1999
s. 10(3)(b).

(ba) *cooperative scheme* has the same meaning as that expression has in the **Crimes at Sea Act 1999**;

S. 57(6)(bb)
inserted by
No. 56/1999
s. 10(3)(b).

(bb) *continental shelf* has the same meaning as in the Seas and Submerged Lands Act 1973 (Commonwealth);

S. 57(6)(bc)
inserted by
No. 56/1999
s. 10(3)(b).

(bc) *criminal laws* means the substantive criminal law, and the law of criminal investigation, procedure and evidence, within the meaning of the cooperative scheme;

(c) *person connected with Victoria* means a person who—

- (i) is domiciled in Victoria;
- (ii) is permanently or temporarily resident in Victoria;
- (iii) being a body corporate has a place of business in or carries on business in Victoria or is registered in or incorporated or established under a law of Victoria;

- (iv) is on or is operating from a ship, boat or vessel of any kind licensed or registered or required to be licensed or registered under a law of Victoria; or
- (v) is on or operating from a rig or other structure or installation of any kind in the adjacent area the operation or function of which is regulated by a law of the Commonwealth or of Victoria.

58 Declaration of validity of certain laws

S. 58
inserted by
No. 108/1994
s. 11.

- (1) Each provision of an Act or subordinate instrument enacted or made, or purporting to have been enacted or made, before the commencement of the Australia Acts—
 - (a) has the same effect as it would have had; and
 - (b) is as valid as it would have been—if the Australia Acts had been in operation at the time of its enactment or making, or purported enactment or making.
- (2) In this section, *Australia Acts* means—
 - (a) the Australia Act 1986 of the Commonwealth; and
 - (b) the Australia Act 1986 of the United Kingdom.

59 Transitional provision—Interpretation of Legislation (Further Amendment) Act 2006

S. 59
inserted by
No. 13/2006
s. 13.

The amendment of this Act made by section 12 of the **Interpretation of Legislation (Further Amendment) Act 2006** does not affect the rights of the parties in any proceeding commenced before the commencement of that Act.

Pt 5 (Heading
and ss 60–64)
inserted by
No. 64/2010
s. 28.

Part V—Authorised versions

S. 60
inserted by
No. 64/2010
s. 28.

60 Definitions

In this Part—

authorised electronic version means an electronic version authorised by the Chief Parliamentary Counsel in accordance with section 62;

authorised version means—

- (a) an authorised electronic version;
- (b) a printed copy of an authorised electronic version in accordance with section 63;

electronic version means a version of legislation published on the Victorian Legislation Website by the Chief Parliamentary Counsel;

legislation means—

- (a) an Act;

Note

Act is defined in section 38.

- (b) a statutory rule;

Note

Statutory rule is defined in section 38.

- (c) a consolidation of an Act as amended from time to time prepared by the Chief Parliamentary Counsel;
- (d) a consolidation of a statutory rule as amended from time to time prepared by the Chief Parliamentary Counsel;

Victorian Legislation Website means
www.legislation.vic.gov.au.

61 Effect of Part

This Part is in addition to, and does not derogate from, section 54.

S. 61
inserted by
No. 64/2010
s. 28.

62 Authorisation of electronic version

- (1) The Chief Parliamentary Counsel may authorise an electronic version.
- (2) An electronic version is an authorised electronic version if—
 - (a) it is in the format authorised by the Chief Parliamentary Counsel;
 - (b) the words "Authorised Version" appear at the beginning of the version;
 - (c) the words "Authorised by the Chief Parliamentary Counsel" appear at the foot of each page of the version.
- (3) An electronic version which does not comply with subsection (2) is not an authorised electronic version.

S. 62
inserted by
No. 64/2010
s. 28.

63 Printed copy of authorised electronic version

A printed copy of an authorised electronic version is an authorised version only if it is printed directly from the authorised electronic version.

S. 63
inserted by
No. 64/2010
s. 28.

64 Evidentiary provisions

- (1) An authorised version is on the mere production of that authorised version admissible as evidence thereof before all courts and persons acting judicially within Victoria.

S. 64
inserted by
No. 64/2010
s. 28.

- (2) It is presumed, unless the contrary is proved, that a document purporting to be an authorised version is what it purports to be.

Note

Document is defined in section 38.

Part VI—General

Pt 6 (Heading
and s. 65)
inserted by
No. 13/2022
s. 39.

64A Appointment of non-citizens to public office

S. 64A
inserted by
No. 55/2025
s. 61.

- (1) Despite any rule of law to the contrary, the fact that a person is a non-citizen does not, of itself, affect the person's eligibility for appointment to a public office or disqualify the person from appointment to a public office.
- (2) Subsection (1) does not apply if—
 - (a) the power to appoint a person is conferred by or under an Act or a subordinate instrument; and
 - (b) the contrary intention expressly appears in that Act or subordinate instrument.
- (3) In this section—

non-citizen includes a person who is not an Australian citizen or who is an alien as known at common law.

64B Validation—appointment of non-citizens to public office

S. 64B
inserted by
No. 55/2025
s. 61.

- (1) In this section—

act or omission means an act or thing done or omitted to be done by an officer in the course of purportedly performing the functions and duties of a public office—

 - (a) whether before, on or after the commencement of section 64A; and
 - (b) whether or not under a power conferred by or under an Act or a subordinate instrument;

non-citizen has the same meaning as in section 64A;

officer means a person who was purportedly appointed to a public office by a purported appointment;

purported appointment means a purported appointment of a non-citizen to a public office that was made during the period beginning on 3 March 1986 and ending immediately before section 64A came into operation.

- (2) A purported appointment has, and is taken to always have had, the same force and effect as it would have had if section 64A had been in operation when it was made.
- (3) An act or omission is not invalid, and is taken to never have been invalid, only because of the fact that, but for subsection (2), the officer was not validly and lawfully appointed.
- (4) Without limiting subsection (2) or (3), an act or thing done or omitted to be done—
 - (a) in reliance, in whole or in part or directly or indirectly, on the purported appointment; and
 - (b) whether or not under a power conferred by or under an Act or a subordinate instrument; and
 - (c) before, on or after the commencement of section 64A—

is not invalid, and is taken to never have been invalid, only because of the fact that, but for subsection (2), the officer was not validly and lawfully appointed.

- (5) The acts and things referred to in subsection (4) include (but are not limited to)—
 - (a) a judgment or order of a court or an order of a tribunal; and
 - (b) the issue of a warrant, summons or other process.
- (6) For the purposes of a proceeding before a court or tribunal, the fact that, but for subsection (2), an officer was not validly and lawfully appointed to the public office is to be disregarded in determining whether—
 - (a) evidence obtained (directly or indirectly) as a result of an act or omission, ought to be admitted; or
 - (b) a right, privilege, obligation or liability has been acquired, accrued or incurred.

65 Regulations

- (1) The Governor in Council may make regulations for or with respect to—
 - (a) exempting an entity or a class of entity or a document (including an Act, a statutory rule or any other subordinate instrument) or class of document from the application of section 38M;
 - (b) prescribing matters relating to the location or format of electronic publication under section 38M;
 - (c) any matter or thing required to be prescribed by this Act or necessary to be prescribed to give effect to this Act.

**S. 65
inserted by
No. 13/2022
s. 39.**

- (2) The regulations may—
- (a) be of general or limited application;
 - (b) differ according to differences in time, place or circumstance;
 - (c) apply to different classes of entities or documents;
 - (d) leave any matter or thing to be from time to time determined or approved by a specified entity;
 - (e) confer powers or discretions or impose duties on any specified entity or class of entity;
 - (f) provide in a specified case or class of cases for the exemption of entities or documents or a class of entity or document from any provision of the regulations—
 - (i) whether unconditionally or on specified conditions; and
 - (ii) either wholly or to the extent specified in the regulations.
- (3) A power conferred by this Act to make regulations may be exercised—
- (a) in relation to—
 - (i) all cases to which the power extends; or
 - (ii) all those cases subject to specified exceptions; or
 - (iii) any specified case or class of case; and
 - (b) so as to make, in relation to any provision for which the power is exercised—
 - (i) the same provision for all cases; or
 - (ii) different provisions for different cases or classes of case; or

- (iii) different provisions for the same case
or class of case for different purposes.

Sch. 1
inserted by
No. 2/2007
s. 6.

Schedule 1—Style changes

Section 54A

- 1 For an expression specified in column 1 of the Table **substitute** the expression specified opposite it in column 2 of the Table—

Table

<i>column 1</i> <i>old style</i>	<i>column 2</i> <i>new style</i>
Sub-division	Subdivision
sub-section	subsection
sub-paragraph	subparagraph
sub-sub-paragraph	sub-subparagraph
sub-clause	subclause
sub-sub-clause	sub-subclause
sub-regulation	subregulation
sub-rule	subrule

Sch. 1 cl. 2
amended by
No. 5/2015
s. 10(1).

- 2 For a Part, Division or Subdivision heading that is not formatted using a style under which only the first letter of the initial word and of any proper noun is capitalised **substitute** that heading formatted using that style.

Sch. 1 cl. 2A
inserted by
No. 5/2015
s. 10(2).

- 2A In the case of a Schedule that has a heading designating the number of that Schedule and a title of that Schedule, for that heading and title **substitute** a heading combining that heading and title, separated by an em rule, and formatted using a style under which only the first letter of the initial word and of any proper noun is capitalised.

Interpretation of Legislation Act 1984
No. 10096 of 1984
Schedule 1—Style changes

- | | |
|---|---|
| <p>2B For a Schedule heading (other than a Schedule heading to which clause 2A applies), or a Part heading within a Schedule, that is not formatted using a style under which only the first letter of the initial word and of any proper noun is capitalised substitute that heading formatted using that style.</p> | <p>Sch. 1 cl. 2B
inserted by
No. 5/2015
s. 10(2).</p> |
| <p>2C In the case of a Form that has a heading designating the number of that Form and a title of that Form, for that heading substitute a heading consisting of that heading and title, separated by an em rule, and formatted using a style under which only the first letter of the initial word and of any proper noun is capitalised.</p> | <p>Sch. 1 cl. 2C
inserted by
No. 5/2015
s. 10(2).</p> |
| <p>3 For a note at the foot of a provision that is not formatted under the heading "Note" or "Notes" substitute that note under the heading "Note" or "Notes" (according to whether there is more than one note at the foot of the provision).</p> | |
| <p>4 In a note that is reformatted in accordance with clause 3 omit the expression "Note:" and any number contained within that expression and insert that number (if any) at the beginning of the note.</p> | |
| <p>5 Omit any double quotation marks around a defined word or defined expression.</p> | |
| <p>Note</p> <p>Defined words and expressions are printed in bold italics.</p> | |
| <p>6 Omit the full stop immediately following the provision number at the beginning of a provision.</p> | |
| <p>7 For a title of an Act or a statutory rule that is not formatted in italics without bolding substitute that title formatted using that style.</p> | <p>Sch. 1 cl. 7
inserted by
No. 5/2015
s. 10(3).</p> |
| <p>8 Omit the line appearing at the end of a Part indicating the end of the Part.</p> | <p>Sch. 1 cl. 8
inserted by
No. 5/2015
s. 10(3).</p> |

Interpretation of Legislation Act 1984
No. 10096 of 1984

Sch.
repealed by
No. 104/1994
s. 35(Sch. 2
item 3.2).

* * * * *

Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

The **Interpretation of Legislation Act 1984** was assented to on 22 May 1984 and came into operation on 1 July 1984: section 2.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

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- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

Interpretation of Legislation Act 1984
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Endnotes

2 Table of Amendments

This publication incorporates amendments made to the **Interpretation of Legislation Act 1984** by Acts and subordinate instruments.

Interpretation of Legislation (Further Amendment) Act 1985, No. 10214/1985

Assent Date: 3.12.85
Commencement Date: S. 4 on 1.1.86: s. 2(2); rest of Act on 1.9.85: s. 2(1)
Current State: All of in Act of operation

Penalties and Sentences Act 1985, No. 10260/1985

Assent Date: 10.12.85
Commencement Date: S. 114(Sch. 4 item 8) on 1.6.86: Government Gazette 30.4.86 p. 1116
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation (Amendment) Act 1986, No. 4/1986

Assent Date: 25.3.86
Commencement Date: 25.3.86
Current State: All of Act in operation

Constitution (British Subjects) Act 1986, No. 61/1986

Assent Date: 16.9.86
Commencement Date: 27.5.87: Government Gazette 27.5.87 p. 1235
Current State: All of Act in operation

Local Government (Consequential Provisions) Act 1989, No. 12/1989

(as amended by No. 13/1990)

Assent Date: 9.5.89
Commencement Date: S. 4(1)(Sch. 2 items 63.1–63.6) on 1.11.89: Government Gazette 1.11.89 p. 2798
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Magistrates' Court Act 1989, No. 51/1989

Assent Date: 14.6.89
Commencement Date: S. 146 on 1.9.90: Government Gazette 25.7.90 p. 2216
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Children and Young Persons Act 1989, No. 56/1989

Assent Date: 14.6.89
Commencement Date: S. 286(Sch. 2 item 10) on 31.1.91: Special Gazette (No. 9) 31.1.91 p. 2
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

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Magistrates' Court (Consequential Amendments) Act 1989, No. 57/1989

Assent Date: 14.6.89
Commencement Date: S. 4(1)(a)–(e)(2) on 1.9.89: Government Gazette 30.8.89 p. 2210; rest of Act on 1.9.90: Government Gazette 25.7.90 p. 2217
Current State: All of Act in operation

Water (Consequential Amendments) Act 1989, No. 81/1989

Assent Date: 5.12.89
Commencement Date: 1.11.90: Government Gazette 15.8.90 p. 2473
Current State: All of Act in operation

Corporations (Victoria) Act 1990, No. 80/1990

Assent Date: 11.12.90
Commencement Date: All of Act (*except* s. 98(2)) on 1.1.91: Special Gazette (No. 69) 21.12.90 p. 1; s. 98(2) on 22.5.91: Government Gazette 22.5.91 p. 1338
Current State: All of Act in operation

Interpretation of Legislation (Amendment) Act 1991, No. 6/1991

Assent Date: 16.4.91
Commencement Date: 16.4.91
Current State: All of Act in operation

Sentencing Act 1991, No. 49/1991

Assent Date: 25.6.91
Commencement Date: 22.4.92: Government Gazette 15.4.92 p. 898
Current State: All of Act in operation

Financial Institutions (Victoria) Act 1992, No. 48/1992

Assent Date: 30.6.92
Commencement Date: S. 116 on 22.7.92: Government Gazette 22.7.92 p. 1874
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation (Amendment) Act 1993, No. 95/1993

Assent Date: 16.11.93
Commencement Date: All of Act (*except* s. 4(1)(3)) on 16.11.93: s. 2(1); s. 4(1)(3) on 1.9.85: s. 2(2)
Current State: All of Act in operation

Public Holidays Act 1993, No. 119/1993

Assent Date: 7.12.93
Commencement Date: 7.12.93
Current State: All of Act in operation

Financial Management Act 1994, No. 18/1994

Assent Date: 10.5.94
Commencement Date: Pt 1 (ss 1–8), ss 60, 61 on 10.5.94: s. 2(1); rest of Act on 1.7.94: s. 2(2)
Current State: All of Act in operation

Interpretation of Legislation Act 1984
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Subordinate Legislation Act 1994, No. 104/1994

Assent Date: 13.12.94
Commencement Date: 1.1.95: s. 2
Current State: All of Act in operation

Constitution (Amendment) Act 1994, No. 108/1994

Assent Date: 20.12.94
Commencement Date: All of Act (*except* s. 11) on 20.12.94: s. 2(1); s. 11 immediately after the commencement of the Australia Act 1986 of the Commonwealth-0500 Greenwich Mean Time on 3.3.86
Current State: All of Act in operation

Constitution (Court of Appeal) Act 1994, No. 109/1994

Assent Date: 20.12.94
Commencement Date: Pt 1 (ss 1, 2) on 20.12.94: s. 2(1); rest of Act on 7.6.95: Special Gazette (No. 41) 23.5.95 p. 1
Current State: All of Act in operation

Consumer Credit (Victoria) Act 1995, No. 41/1995

Assent Date: 14.6.95
Commencement Date: Ss 60, 61 on 1.11.96: Government Gazette 29.8.96 p. 2274
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Miscellaneous Acts (Omnibus Amendments) Act 1995, No. 100/1995

Assent Date: 5.12.95
Commencement Date: S. 28 on 5.6.96: s. 2(6)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Friendly Societies (Victoria) Act 1996, No. 83/1996

Assent Date: 23.12.96
Commencement Date: Ss 38, 39 on 1.10.97: Special Gazette (No. 122) 1.10.97 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation (Amendment) Act 1997, No. 6/1997

Assent Date: 22.4.97
Commencement Date: 22.4.97: s. 2
Current State: All of Act in operation

National Electricity (Victoria) Act 1997, No. 29/1997

Assent Date: 27.5.97
Commencement Date: Ss 9, 10 on 13.12.98: Special Gazette (No. 148) 11.12.98 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation Act 1984
No. 10096 of 1984
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Law and Justice Legislation (Further Amendment) Act 1997, No. 84/1997

Assent Date: 2.12.97
Commencement Date: S. 51 on 2.12.97: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Gas Pipelines Access (Victoria) Act 1998, No. 31/1998

Assent Date: 19.5.98
Commencement Date: Ss 26, 27 on 1.7.99: Government Gazette 1.7.99
p. 1521
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Financial Sector Reform (Victoria) Act 1999, No. 37/1999

Assent Date: 8.6.99
Commencement Date: S. 58(Sch. 1 item 2) on 15.6.01: Government Gazette
14.6.01 p. 1273
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Crimes at Sea Act 1999, No. 56/1999

Assent Date: 21.12.99
Commencement Date: S. 10 on 31.3.01: Government Gazette 29.3.01 p. 523
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation (Amendment) Act 2000, No. 60/2000

Assent Date: 8.11.00
Commencement Date: 1.1.01: s. 2
Current State: All of Act in operation

Corporations (Consequential Amendments) Act 2001, No. 44/2001

Assent Date: 27.6.01
Commencement Date: S. 3(Sch. item 67) on 15.7.01: s. 2
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Statute Law (Further Revision) Act 2002, No. 11/2002

Assent Date: 23.4.02
Commencement Date: S. 3(Sch. 1 item 38) on 24.4.02: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Criminal Justice Legislation (Miscellaneous Amendments) Act 2002, No. 35/2002

Assent Date: 18.6.02
Commencement Date: S. 25(3) on 19.6.02: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Fair Trading (Amendment) Act 2003, No. 30/2003 (as amended by No. 106/2003)

Assent Date: 27.5.03
Commencement Date: S. 78 on 28.5.03: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation Act 1984
No. 10096 of 1984
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Interpretation of Legislation (Amendment) Act 2004, No. 61/2004

Assent Date: 12.10.04
Commencement Date: 13.10.04: s. 2
Current State: All of Act in operation

National Electricity (Victoria) Act 2005, No. 8/2005

Assent Date: 27.4.05
Commencement Date: S. 16 on 1.7.05: Special Gazette (No. 120) 28.6.05 p. 2
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation (Further Amendment) Act 2006, No. 13/2006

Assent Date: 11.4.06
Commencement Date: 12.4.06: s. 2
Current State: All of Act in operation

Statute Law (Further Revision) Act 2006, No. 29/2006

Assent Date: 6.6.06
Commencement Date: S. 3(Sch. 1 item 15) on 7.6.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation Amendment Act 2007, No. 2/2007

Assent Date: 6.3.07
Commencement Date: 6.3.07: s. 2
Current State: All of Act in operation

Motor Car Traders Amendment Act 2008, No. 4/2008

Assent Date: 4.3.08
Commencement Date: S. 31 on 1.12.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

National Gas (Victoria) Act 2008, No. 30/2008

Assent Date: 17.6.08
Commencement Date: S. 42 on 1.7.08: Special Gazette (No. 184) 1.7.08 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Coroners Act 2008, No. 77/2008

Assent Date: 11.12.08
Commencement Date: S. 129(Sch. 2 item 13) on 1.11.09: s. 2
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Courts Legislation Amendment (Costs Court and Other Matters) Act 2008, No. 78/2008

Assent Date: 11.12.08
Commencement Date: S. 24 on 31.12.09: s. 2(3)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

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Sheriff Act 2009, No. 9/2009

Assent Date: 24.3.09
Commencement Date: S. 77 on 1.10.09: Government Gazette 1.10.09 p. 2539
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 71) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Statute Law Amendment (Evidence Consequential Provisions) Act 2009, No. 69/2009

Assent Date: 24.11.09
Commencement Date: S. 54(Sch. Pt 2 item 29) on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Offshore Petroleum and Greenhouse Gas Storage Act 2010, No. 10/2010

Assent Date: 23.3.10
Commencement Date: S. 800(Sch. 6 item 7) on 1.1.12: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Credit (Commonwealth Powers) Act 2010, No. 11/2010

Assent Date: 30.3.10
Commencement Date: Ss 51, 52 on 1.7.10: Government Gazette 24.6.10 p. 1273
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Statute Law Amendment (National Health Practitioner Regulation) Act 2010, No. 13/2010

Assent Date: 30.3.10
Commencement Date: S. 49 on 1.7.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Justice Legislation Further Amendment Act 2010, No. 64/2010

Assent Date: 28.9.10
Commencement Date: S. 28 on 1.1.11: s. 2(3)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Bail Amendment Act 2010, No. 70/2010

Assent Date: 19.10.10
Commencement Date: S. 39 on 1.1.11: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

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Fair Trading Amendment (Australian Consumer Law) Act 2010, No. 72/2010

Assent Date: 19.10.10
Commencement Date: S. 48(Sch. item 13) on 1.1.11: Special Gazette
(No. 502) 20.12.10 p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Children's Services Amendment Act 2011, No. 80/2011

Assent Date: 21.12.11
Commencement Date: S. 79(Sch. item 4) on 1.1.12: Special Gazette
(No. 423) 21.12.11 p. 2
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Australian Consumer Law and Fair Trading Act 2012, No. 21/2012

Assent Date: 8.5.12
Commencement Date: S. 239(Sch. 6 item 22) on 1.7.12: Special Gazette
(No. 214) 28.6.12 p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Statute Law Revision Act 2012, No. 43/2012

Assent Date: 27.6.12
Commencement Date: S. 3(Sch. item 24) on 28.6.12: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Resources Legislation Amendment (General) Act 2012, No. 64/2012

Assent Date: 30.10.12
Commencement Date: S. 73 on 1.12.12: Special Gazette (No. 399) 27.11.12
p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Electronic Conveyancing (Adoption of National Law) Act 2013, No. 7/2013

Assent Date: 26.2.13
Commencement Date: S. 15 on 14.3.13: Special Gazette (No. 86) 13.3.13 p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Rail Safety National Law Application Act 2013, No. 22/2013

Assent Date: 23.4.13
Commencement Date: S. 59 on 19.5.14: Special Gazette (No. 148) 13.5.14
p. 2
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation Act 1984
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Heavy Vehicle National Law Application Act 2013, No. 30/2013

Assent Date: 4.6.13
Commencement Date: S. 60(Sch. item 5) on 10.2.14: Special Gazette (No. 28) 4.2.14 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Marine (Domestic Commercial Vessel National Law Application) Act 2013, No. 36/2013

Assent Date: 18.6.13
Commencement Date: S. 83 on 1.7.13: Special Gazette (No. 226) 25.6.13 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Consumer Affairs Legislation Amendment Act 2013, No. 57/2013

Assent Date: 22.10.13
Commencement Date: Ss 11, 12 on 23.10.13: s. 2(3)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Statute Law Revision Act 2013, No. 70/2013

Assent Date: 19.11.13
Commencement Date: S. 3(Sch. 1 item 25) on 1.12.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Legal Profession Uniform Law Application Act 2014, No. 17/2014 (as amended by No. 8/2015)

Assent Date: 25.3.14
Commencement Date: Ss 158, 159 on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Honorary Justices Act 2014, No. 32/2014

Assent Date: 13.5.14
Commencement Date: S. 57 on 1.9.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Courts Legislation Miscellaneous Amendments Act 2014, No. 62/2014

Assent Date: 9.9.14
Commencement Date: S. 109 on 10.9.14: s. 2(1)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Inquiries Act 2014, No. 67/2014

Assent Date: 23.9.14
Commencement Date: S. 147(Sch. 2 item 23) on 15.10.14: Special Gazette (No. 364) 14.10.14 p. 2
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

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Interpretation of Legislation Amendment Act 2015, No. 5/2015

Assent Date: 25.3.15
Commencement Date: Ss 4–10 on 1.7.15: s. 2
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Statute Law Revision Act 2015, No. 21/2015

Assent Date: 16.6.15
Commencement Date: S. 3(Sch. 1 item 29) on 1.8.15: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Justice Legislation Further Amendment Act 2016, No. 3/2016

Assent Date: 16.2.16
Commencement Date: S. 59 on 1.5.16: Special Gazette (No. 114) 26.4.16 p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

**Justice Legislation Amendment (Court Security, Juries and Other Matters)
Act 2017, No. 38/2017**

Assent Date: 29.8.17
Commencement Date: S. 88 on 30.8.17: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Parks and Crown Land Legislation Amendment Act 2017, No. 53/2017

Assent Date: 24.10.17
Commencement Date: S. 14 on 15.12.17: Special Gazette (No. 433) 12.12.17
p. 1
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Oaths and Affirmations Act 2018, No. 6/2018

Assent Date: 27.2.18
Commencement Date: S. 66 on 1.3.19: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

**Justice Legislation Amendment (System Enhancements and Other Matters)
Act 2021, No. 11/2021**

Assent Date: 23.3.21
Commencement Date: S. 195 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Interpretation of Legislation Act 1984**

Interpretation of Legislation Act 1984
No. 10096 of 1984
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Justice Legislation Amendment (Criminal Procedure Disclosure and Other Matters) Act 2022, No. 1/2022

Assent Date: 15.2.22
Commencement Date: S. 96 on 29.3.22: Special Gazette (No. 157) 29.3.22 p. 1
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Regulatory Legislation Amendment (Reform) Act 2022, No. 13/2022

Assent Date: 29.3.22
Commencement Date: Ss 37–39 on 31.7.22: s. 2(8)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Statute Law Amendment (References to the Sovereign) Act 2023, No. 25/2023

Assent Date: 5.9.23
Commencement Date: Ss 3–6 on 6.9.23: s. 2
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Statewide Treaty Act 2025, No. 45/2025

Assent Date: 13.11.25
Commencement Date: S. 270 on 1.5.26: s. 3(2)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

Justice Legislation Amendment (Police and Other Matters) Act 2025, No. 55/2025

Assent Date: 9.12.25
Commencement Date: S. 59 on 13.11.25: s. 2(2); ss 57, 58, 60, 61 on 10.12.25: s. 2(1)
Current State: This information relates only to the provision/s amending the **Interpretation of Legislation Act 1984**

3 Explanatory details

¹ S. 32: Section 4 of the **Interpretation of Legislation (Amendment) Act 1991**, No. 6/1991 reads as follows:

4 Validation of existing subordinate instruments

- (1) Subject to subsection (4) and despite anything to the contrary in section 32(3) of the **Interpretation of Legislation Act 1984** (as in force immediately before the commencement of this Act), a subordinate instrument within the meaning of that Act that was made before that commencement and that has not been, and does not purport to have been, revoked, whether directly or indirectly, is not to be taken to be, or to have ever been, void and of no effect by reason only of a failure to comply with section 32(2)(a) of that Act in relation to that subordinate instrument.
- (2) The Legal and Constitutional Committee may report a failure referred to in subsection (1) to each House of the Parliament and the subordinate instrument shall be disallowed if each House passes a resolution in accordance with subsection (3).
- (3) Section 32 of the **Interpretation of Legislation Act 1984** (as amended by this Act) applies to a resolution to disallow a subordinate instrument under this section in the same manner and to the same extent as it applies to a resolution under section 32 of that Act as so amended and in force for the time being.
- (4) A question concerning the validity of a subordinate instrument arising in proceedings commenced before the commencement of this Act must be determined as if this section had not been enacted.

² S. 38 def. of *Court of Appeal*: Sections 29 and 30 of the **Constitution (Court of Appeal) Act 1994**, No. 109/1994 read as follows:

29 Proceedings before Full Court

- (1) The **Constitution Act 1975**, the **Supreme Court Act 1986** and the **Crimes Act 1958** and any other Act amended by this Act as respectively in force immediately before the commencement of this section continue to apply, despite the enactment of this Act, to a proceeding the hearing of which by the Full Court of the Supreme Court commenced before the commencement of this section.
- (2) If the Court of Appeal so orders, anything required to be done by the Supreme Court in relation to or as a consequence of a proceeding after the Full Court has delivered judgement in that proceeding, may be done by the Court of Appeal.

30 References to Full Court

A reference in an Act or an instrument made under an Act or in any other document to the Full Court of the Supreme Court or to the Supreme Court sitting as the Full Court is to be taken to include a reference to the Court of Appeal.

³ S. 44(5): Section 43 of the **Supreme Court Act 1986**, No. 110/1986 reads as follows:

S. 43 (Heading) inserted by No. 17/2005 s. 7(1).

43 Standard time in Victoria

S. 43(1) substituted by No. 17/2005 s. 7(2).

- (1) Standard time throughout Victoria is the time that is 10 hours in advance of Co-ordinated Universal Time.

Note

Under section 8AA of the National Measurement Act 1960 of the Commonwealth the Chief Metrologist is required to maintain Co-ordinated Universal Time (UTC) as determined by the International Bureau of Weights and Measures.

(2) If—

- (a) an expression of time occurs in an instrument; or
- (b) the doing or not doing of anything at a certain time has an effect in law—

the time is standard time as provided in subsection (1) unless it is otherwise specifically stated.

⁴ S. 57: Section 11 of the **Crimes at Sea Act 1999**, No. 56/1999 reads as follows:

11 Application of repeal and amendments

- (1) In this section *commencement day* means the day on which this Act comes into operation.
- (2) Although section 9 repeals the **Crimes (Offences at Sea) Act 1978**, that Act continues to apply, in relation to acts and omissions that took place before the commencement day, as if the repeal had not happened.
- (3) The amendments of the **Interpretation of Legislation Act 1984** made by section 10 apply to acts and omissions that take place on or after the commencement day.
- (4) For the purposes of this section, if an act or omission is alleged to have taken place between two dates, one before and one after the commencement day, the act or omission is alleged to have taken place before the commencement day.